

**U.S. District Court
District of South Carolina (Charleston)
CIVIL DOCKET FOR CASE #: 2:25-cv-00405-RMG-MGB**

Nelson v. Curtis-Wright Corporation et al
Assigned to: Honorable Richard M Gergel
Referred to: Magistrate Judge Mary Gordon Baker
Cause: 42:1981 Civil Rights

Date Filed: 01/21/2025
Jury Demand: Both
Nature of Suit: 442 Civil Rights: Jobs
Jurisdiction: Federal Question

Plaintiff

Debra Nelson

represented by **Debra Nelson**

2718 Crestline Drive
North Charleston, SC 29405
PRO SE

Bonnie Travaglio Hunt

Hunt Law
PO Box 1845
Goose Creek, SC 29445
843-553-8709
Email: bthunt@huntlawllc.com
TERMINATED: 02/20/2025
LEAD ATTORNEY

V.

Defendant

Curtiss Wright Electro Mechanical Corp.

doing business as

Curtiss-Wright Steam and Air Solutions

represented by **Joseph Vincent Valenza**

Jackson Lewis (GRE)

15 South Main Street

Suite 700

Greenville, SC 29601

864-672-8078

Email: joseph.valenza@jacksonlewis.com

LEAD ATTORNEY

ATTORNEY TO BE NOTICED

Thomas Chase Samples

Jackson Lewis (GRE)

15 South Main Street

Suite 700

Greenville, SC 29601

864-672-8034

Email: chase.samples@jacksonlewis.com

LEAD ATTORNEY

ATTORNEY TO BE NOTICED

Defendant

Stephanie Lanier

represented by **Joseph Vincent Valenza**

(See above for address)

LEAD ATTORNEY

ATTORNEY TO BE NOTICED

Thomas Chase Samples

(See above for address)

LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

Shane Sablotsky

represented by **Joseph Vincent Valenza**

(See above for address)

LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Thomas Chase Samples

(See above for address)

LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
01/21/2025	<u>1</u>	NOTICE OF REMOVAL from : Dorchester County Court of Common Pleas, case number 2024CP1802041. (Filing fee \$ 405 receipt number ASCDC-1221762), filed by Curtis-Wright Corporation, Shane Sablotsky, Stephanie Lanier. (Attachments: # <u>1</u> State Court Documents) (agaz,) (Main Document 1 replaced on 1/27/2025) (agaz,). (Entered: 01/23/2025)
01/21/2025	<u>2</u>	Local Rule 26.01 Answers to Interrogatories by Curtis-Wright Corporation. (agaz,) (Entered: 01/23/2025)
01/21/2025	<u>3</u>	Local Rule 26.01 Answers to Interrogatories by Stephanie Lanier. (agaz,) (Entered: 01/23/2025)
01/21/2025	<u>4</u>	Local Rule 26.01 Answers to Interrogatories by Shane Sablotsky. (agaz,) (Entered: 01/23/2025)
01/24/2025	<u>6</u>	NOTICE and Acknowledgment of receipt of Notice of Removal by Clerk of Court for Dorchester County. (Attachments: # <u>1</u> Exhibit State Acknowledgement and Receipt of Removal)(Samples, Thomas) (Entered: 01/24/2025)

01/26/2025	<u>7</u>	AMENDED COMPLAINT against Curtis-Wright Corporation, Stephanie Lanier, Shane Sablotsky, filed by Debra Nelson. Service due by 4/28/2025 (Hunt, Bonnie) (Main Document 7 replaced to correct filing date on 1/27/2025) (agaz,). (Entered: 01/26/2025)
01/28/2025	<u>8</u>	AMENDED COMPLAINT against All Defendants, filed by Debra Nelson. Service due by 4/28/2025 (Hunt, Bonnie) (Entered: 01/28/2025)
01/29/2025	<u>9</u>	ACCEPTANCE OF SERVICE OF COMPLAINT by Curtis-Wright Corporation, Shane Sablotsky, Stephanie Lanier. Curtis-Wright Corporation served on 1/28/2025, answer due 2/18/2025; Shane Sablotsky served on 1/28/2025, answer due 2/18/2025; Stephanie Lanier served on 1/28/2025, answer due 2/18/2025. (Samples, Thomas) (Main Document 9 replaced with corrected document provided by filing user on 1/30/2025) (agaz,). (Entered: 01/29/2025)
01/30/2025	<u>10</u>	MOTION to Withdraw as Attorney by Debra Nelson. Response to Motion due by 2/13/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. No proposed order.Motions referred to Molly H Cherry.(Hunt, Bonnie) (Entered: 01/30/2025)
01/31/2025	11	TEXT ORDER denying, without prejudice and with leave to refile, <u>10</u> Motion to be Relieved as Counsel. Pursuant to this Court's Local Civil Rules, no attorney whose appearance has been entered shall withdraw his or her appearance except with leave of the Court on motion filed pursuant to Local Civil Rule 83.I.07 (D.S.C.). If the withdrawal will leave the party unrepresented, the motion must be filed with "either a consent to withdrawal signed by the party or a certification that the party has been provided a copy of the motion and an explanation of the party's right to object to withdrawal." Loc. Civ. R. 83.I.07(B) (D.S.C.). Counsel has not provided certification that Plaintiff has been given a copy of the Motion to be Relieved as Counsel, along with an appropriate explanation of her right to object to the withdrawal, nor included the mailing address and telephone number for Plaintiff. Accordingly, the Motion to be Relieved as Counsel (ECF No. 10) is DENIED without prejudice and with leave to refile in compliance with Local Civil Rule 83.I.07. Entered at the direction of Magistrate Judge Molly H Cherry on 1/31/2025. (agaz,) (Entered: 01/31/2025)

02/01/2025	<u>12</u>	Amended MOTION to Withdraw as Attorney by Debra Nelson. Response to Motion due by 2/18/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Exhibit A. Declaration of Bonnie Travaglio Hunt)No proposed order.Motions referred to Molly H Cherry.(Hunt, Bonnie) (Entered: 02/01/2025)
02/03/2025	13	TEXT ORDER directing Counsel for Plaintiff to supplement <u>12</u> Amended Motion to Withdraw as Attorney with a letter to Plaintiff explaining that Plaintiff may file an objection to the Motion "in the form of a letter signed by [Plaintiff]" within 17 days from the date of Counsel's Motion, in accordance with Local Rule 83.I.07(B)(3), such that Plaintiff's deadline to respond to the Motion is February 18, 2025. Entered at the direction of Magistrate Judge Molly H Cherry on 2/3/2025. (agaz,) (Entered: 02/03/2025)
02/11/2025	<u>14</u>	MOTION to Dismiss by Curtis-Wright Corporation, Stephanie Lanier, Shane Sablotsky. Response to Motion due by 2/25/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Memo in Support Memo in Support to Partial Motion to Dismiss, # <u>2</u> Exhibit Exhibit A - NRTS 415-2023-01259, # <u>3</u> Exhibit Exhibit B - NRTS 415-2023-01656)No proposed order.Motions referred to Molly H Cherry.(Samples, Thomas) (Entered: 02/11/2025)
02/11/2025	<u>15</u>	ANSWER to <u>8</u> Amended Complaint by Curtis-Wright Corporation, Stephanie Lanier, Shane Sablotsky.(Samples, Thomas) (Entered: 02/11/2025)
02/14/2025	<u>16</u>	MOTION for Hearing, MOTION for Extension of Time to File Response/Reply as to <u>14</u> MOTION to Dismiss, by Debra Nelson. . Response to Motion due by 2/28/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> List of Exhibits, # <u>2</u> Exhibit 1: NLRB Email, # <u>3</u> Exhibit 2: HR in PA, # <u>4</u> Exhibit 3: Fwd- Nelson v. Curtiss-Wright, # <u>5</u> Exhibit 4: Fwd: Case, # <u>6</u> Exhibit 5: DOD IG, # <u>7</u> Exhibit 6: Additional Claims Email, # <u>8</u> Exhibit 7: (no subject) Email, # <u>9</u> Exhibit 8: Signature Requested Email, # <u>10</u> Exhibit 9: Rough Draft of Complaint Email, # <u>11</u> Exhibit 10: Conspiracy an Wire Tapping Email, # <u>12</u> Blank Resolution of Fee Disputes Board Form) Motions referred to Molly H Cherry. (agaz,) (Entered: 02/18/2025)

02/19/2025	<u>17</u>	SUPPLEMENT by Debra Nelson to 13 Order,, . (Attachments: # <u>1</u> Exhibit Green Card)(Hunt, Bonnie) (Entered: 02/19/2025)
02/19/2025	<u>18</u>	RESPONSE to Motion re <u>16</u> MOTION for Extension of Time to File Response/Reply as to <u>14</u> MOTION to Dismiss MOTION for Hearing Response filed by Curtis-Wright Corporation, Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 2/26/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Samples, Thomas) (Entered: 02/19/2025)
02/20/2025	<u>19</u>	ORDER. IT IS ORDERED that <u>12</u> Motion to be Relieved as Counsel is GRANTED. IT IS FURTHER ORDERED that <u>16</u> Motion for Hearing and for Extension of Time is denied, in part, and granted, in part. Signed by Magistrate Judge Molly H Cherry on 2/20/2025. (agaz,) (Entered: 02/20/2025)
02/20/2025	<u>21</u>	ROSEBORO ORDER directing clerk to forward summary judgment explanation to the opposing party and directing that party to respond in 31 days. Response due to <u>14</u> MOTION to Dismiss by 3/24/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Signed by Magistrate Judge Molly H Cherry on 2/20/2025. (agaz,) (Entered: 02/20/2025)
02/20/2025	22	***DOCUMENT MAILED <u>19</u> Order on Motion to Withdraw as Attorney, Order on Motion for Extension of Time to File Response/Reply, Order on Motion for Hearing, <u>21</u> Roseboro Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 02/20/2025)
03/18/2025	<u>23</u>	RESPONSE in Opposition re <u>14</u> MOTION to Dismiss Response filed by Debra Nelson.Reply to Response to Motion due by 3/25/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # <u>1</u> Envelope) (agaz,) (Entered: 03/18/2025)
03/18/2025	<u>24</u>	MOTION to Strike by Debra Nelson. Response to Motion due by 4/1/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Supporting Documents, # <u>2</u> Envelope) Motions referred to Molly H Cherry. (agaz,) (Entered: 03/18/2025)

03/20/2025	25	TEXT ORDER denying 24 Motion to Strike. Plaintiff asks this court to have all communication regarding her case sent to her, to allow her to proceed pro se, and to have attorney Hunt removed from her case. However, this Court has already relieved attorney Hunt as counsel for Plaintiff and allowed Plaintiff to proceed pro se. ECF No. 19. As a pro se plaintiff, court filings will be served directly on Plaintiff. To the extent Plaintiff seeks copies of documents previously filed with the Court, she may request such copies from the Clerk's Office and must pay for any such copies as directed by the Clerk's Office. Accordingly, the relief Plaintiff is requesting has already been granted. Plaintiff also asks generally that statements made by attorney Hunt about her be stricken from the record; however, Plaintiff filed with her Motion copies of the very statements she seeks to strike. And, Plaintiff sufficiently detailed her response to attorney Hunt's statements in Plaintiff's previous Motion for Hearing and Extension of Time. ECF No. 16. Under these circumstances, the Court determines it is not necessary to strike any of the statements at issue. For the foregoing reasons, the Motion to Strike is DENIED. Entered at the direction of Magistrate Judge Molly H Cherry on 3/20/2025. (agaz,) (Entered: 03/20/2025)
03/20/2025	26	***DOCUMENT MAILED 25 Order on Motion to Strike, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 03/20/2025)
03/24/2025	27	NOTICE of Appearance by Joseph Vincent Valenza on behalf of Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky (Valenza, Joseph) (Entered: 03/24/2025)
03/25/2025	28	REPLY to Response to Motion re 14 MOTION to Dismiss Response filed by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky. (Samples, Thomas) (Entered: 03/25/2025)
04/02/2025	29	MOTION to Amend/Correct 23 Response in Opposition to Motion, by Debra Nelson. Response to Motion due by 4/16/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Molly H Cherry. (agaz,) (Entered: 04/02/2025)

04/02/2025	<u>30</u>	MOTION for issuance of Subpoena by Debra Nelson. Response to Motion due by 4/16/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Molly H Cherry. (agaz,) (Entered: 04/02/2025)
04/04/2025	31	TEXT ORDER denying, without prejudice, <u>29</u> Plaintiff's Motion to Amend Answer in Opposition to Defendants' Partial Motion to Dismiss. In her Motion, Plaintiff seeks leave to file an amended Response in Opposition to Defendants' Partial Motion to Dismiss, in which "Plaintiff will include facts requested by the defense counsel." ECF No. 29. It appears to the Court that Plaintiff is seeking leave to allege new facts to support the claims in her Second Amended Complaint. However, it is well established that parties cannot amend their complaint through briefing. See S. Walk at Broadlands Homeowner's Ass'n, Inc. v. OpenBand at Broadlands, LLC, 713 F.3d 175, 18485 (4th Cir. 2013). Thus, to the extent Plaintiff seeks leave to file an amended response or a sur-response to Defendant's Reply in order to allege new facts, the motion is DENIED. To the extent Plaintiff wants to amend her Second Amended Complaint, she must file a Motion the Amend the Complaint accompanied by a signed, complete proposed amended complaint pursuant to Rule 15 of the Federal Rules of Civil Procedure. A plaintiff may not amend a complaint in piecemeal fashion by merely submitting additional factual allegations. McClary v. Searles, No. 3:15cv77FDW, 2015 WL 2259312, at *1 n. 1 (W.D.N.C. May 13, 2015). Additionally, an amended complaint replaces the original complaint and should be complete in itself. See Young v. City of Mount Ranier, 238 F.3d 567, 572 (4th Cir. 2001) ("As a general rule, an amended pleading ordinarily supersedes the original and renders it of no legal effect."). Plaintiff has not submitted a signed, complete proposed amended complaint, and, therefore, to the extent her Motion can be construed as a Motion to Amend her Complaint, the Motion is DENIED without prejudice and with leave to re-file within fourteen days of the date of this Order. AND IT IS SO ORDERED. Entered at the direction of Magistrate Judge Molly H Cherry on 4/4/2025. (agaz,) (Entered: 04/04/2025)

04/04/2025	32	***DOCUMENT MAILED 31 Order on Motion to Amend/Correct, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 04/04/2025)
04/15/2025	33	RESPONSE in Opposition re 30 MOTION for issuance of Subpoena Response filed by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 4/22/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Samples, Thomas) (Entered: 04/15/2025)
04/16/2025	34	AMENDED MOTION for issuance of Subpoena by Debra Nelson. Response to Motion due by 4/30/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Molly H Cherry. (agaz,) (Additional attachment(s) added on 4/16/2025: # 1 Envelope) (agaz,). (Entered: 04/16/2025)
04/24/2025	35	Second Amended MOTION for issuance of Subpoena by Debra Nelson. Response to Motion due by 5/8/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Envelope) Motions referred to Molly H Cherry. (agaz,) (Entered: 04/24/2025)
04/24/2025	36	ORDER denying, without prejudice, 30 Motion for Issuance of Subpoena, 34 Amended Motion for Issuance of Subpoena, and 35 Second Amended Motion for Issuance of Subpoena. Signed by Magistrate Judge Molly H Cherry on 4/24/2025. (agaz,) (Entered: 04/24/2025)
04/24/2025	37	***DOCUMENT MAILED 36 Order on Motion for Issuance of Subpoena, placed in U.S. Mail from Charleston Clerks Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 04/24/2025)
05/12/2025	38	SUR REPLY to 28 REPLY to 23 Response to Motion re 14 MOTION to Dismiss. Response filed by Debra Nelson. (Attachments: # 1 Envelope)(agaz,) (Entered: 05/12/2025)

05/13/2025	39	MOTION to Amend/Correct 8 Amended Complaint by Debra Nelson. Response to Motion due by 5/27/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit List, # 2 Envelope) Motions referred to Molly H Cherry. (agaz,) (Additional attachment(s) added on 5/13/2025: # 3 Copy of Last Page of 39 , # 4 Envelope) (agaz,). (Entered: 05/13/2025)
05/13/2025	40	NON-STANDARD ITEM RECEIVED: USB Drive containing exhibits from Debra Nelson re: 39 MOTION to Amend/Correct 8 Amended Complaint. Item placed in Judge Cherry's box for review. (agaz,) (Entered: 05/13/2025)
05/14/2025	41	TEXT ORDER denying, without prejudice, 39 Motion to Amend the Second Amended Complaint. On May 13, 2025, Plaintiff filed a Motion to Amend her Second Amended Complaint, stating that she would like to include "newly documented and/or previously omitted claims and facts that are directly related to the original cause of action." ECF No. 39 at 2. Plaintiff also submitted a USB drive that purportedly contains "all documents related to the additional claims alleged in this request." Id. at 3; see ECF No. 40. However, Plaintiff has not submitted a proposed third amended complaint for consideration by the Court. As the Court previously explained in its Text Order dated April 4, 2025, ECF No. 31, to the extent Plaintiff wants to amend her Second Amended Complaint, she must file a Motion to Amend the Complaint <u>AND a signed, complete proposed amended complaint pursuant to Rule 15 of the Federal Rules of Civil Procedure</u>. A plaintiff may not amend a complaint in piecemeal fashion by merely submitting additional factual allegations and listing new claims. See McClary v. Searles, No. 3:15cv77FDW, 2015 WL 2259312, at *1 n. 1 (W.D.N.C. May 13, 2015). Additionally, an amended complaint replaces the original complaint and should be complete in itself. See Young v. City of Mount Ranier, 238 F.3d 567, 572 (4th Cir. 2001) ("As a general rule, an amended pleading ordinarily supersedes the original and renders it of no legal effect.").

		Plaintiff should bear in mind that any proposed Third Amended Complaint should contain "a short and plain statement" of her claims showing that she is entitled to relief. See Fed. R. Civ. P. 8. "The Court is not inclined to sift through Plaintiff's additional evidence to attempt to divine what specific information Plaintiff believes supports which particular [claims or] allegations in [her Amended] Complaint." Short v. Boyd, No. 1:23-CV-00207-MR-WCM, 2024 WL 4678868, at *5 (W.D.N.C. Nov. 5, 2024), affirmed by No. 1:23-CV-00207-MR-WCM, 2025 WL 310103 (W.D.N.C. Jan. 27, 2025); see also Simon v. Gladstone, No. 23-1431, 2025 WL 721317, at *2 (4th Cir. Mar. 6, 2025) (finding that the district court did not abuse its discretion when it declined to consider hyperlinked documents and video the plaintiff attempted to incorporate by reference into the complaint "because the hyperlinks and video in the complaint contravene foundational pleading standards required under Rule 8"). Plaintiff has not submitted a signed, complete proposed amended complaint, and, therefore, her Motion to Amend her Second Amended Complaint is DENIED without prejudice and with leave to re-file by May 28, 2025. AND IT IS SO ORDERED. Entered at the direction of Magistrate Judge Molly H Cherry on 5/14/2025. (agaz,) (Entered: 05/14/2025)
05/14/2025	42	***DOCUMENT MAILED 41 Order on Motion to Amend/Correct, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 05/14/2025)
05/28/2025	43	SECOND MOTION to Amend/Correct 8 Amended Complaint by Debra Nelson. Response to Motion due by 6/11/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Envelope) Motions referred to Molly H Cherry. (agaz,) (Additional attachment(s) added on 5/28/2025: # 2 Duplicate Filing, # 3 Envelope) (agaz,). (Entered: 05/28/2025)
06/02/2025	44	TEXT ORDER granting 43 Second Motion to Amend Complaint. Leave to amend a complaint should be freely given when justice so requires. Fed. R. Civ. P. 15(a)(2); see Foreman v. Davis, 371 U.S. 178 (1962); Johnson v. Oroweat Foods Co., 785 F.2d 503, 509 (4th Cir. 1986). Plaintiff's Motion to Amend is

		hereby granted. The clerk of court is directed to file the proposed Amended Complaint (ECF No. 43) on the docket as the THIRD AMENDED COMPLAINT. Defendants may answer or otherwise plead in response to the Third Amended Complaint in accordance with the Federal Rules of Civil Procedure. AND IT IS SO ORDERED. Entered at the direction of Magistrate Judge Molly H Cherry on 6/2/2025. (agaz,) (Entered: 06/02/2025)
06/02/2025	45	THIRD AMENDED COMPLAINT against Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky, filed by Debra Nelson. (agaz,) (Entered: 06/02/2025)
06/02/2025	46	TEXT ORDER mootng 14 Motion to Dismiss. On June 2, 2025, Plaintiff filed a Third Amended Complaint. ECF No. 45. Accordingly, the Motion to Dismiss the Second Amended Complaint is MOOT. Entered at the direction of Magistrate Judge Molly H Cherry on 6/2/2025. (agaz,) (Entered: 06/02/2025)
06/02/2025	47	***DOCUMENT MAILED 46 Order on Motion to Dismiss, 44 Order on Motion to Amend/Correct, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 06/02/2025)
06/03/2025	48	THIRD MOTION to Amend/Correct 8 Amended Complaint by Debra Nelson. Response to Motion due by 6/17/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Envelope) Motions referred to Molly H Cherry. (agaz,) (Entered: 06/03/2025)
06/09/2025	49	TEXT ORDER denying, without prejudice, 48 Third Motion to Amend Complaint. On May 28, 2025, Plaintiff filed a Motion to Amend the Complaint, along with a proposed Third Amended Complaint. ECF No. 43. Plaintiff's filing was dated May 27, 2025. Id. at 3. On June 2, 2025, the Court issued a Text Order granting that Motion, see ECF No. 44, and the clerk of court docketed Plaintiff's Third Amended Complaint, ECF No. 45, the same day. The following day, on June 3, 2025, Plaintiff filed another Motion to Amend the Complaint with a proposed amended complaint, which was dated May 19, 2025. ECF No. 48. Although this new Motion

		to Amend arrived after the one docketed on May 28, 2025, it appears that Plaintiff signed and mailed this new Motion to Amend BEFORE she signed and submitted the Motion to Amend that the Court granted on June 2, 2025. Because the Court has already granted Plaintiff's later-dated request to amend and entered the later-dated Third Amended Complaint, it appears to the Court that Plaintiffs earlier-dated Motion to Amend is MOOT. However, to the extent that the earlier-dated proposed Third Amended Complaint is the one Plaintiff wanted to file, she has until June 20, 2025, to so notify the Court in writing that she wants to replace the filed Third Amended Complaint (dated May 27, 2025) with the one dated May 19, 2025. The deadline for Defendants to plead in response to the Third Amended Complaint is hereby extended to July 7, 2025. AND IT IS SO ORDERED. Entered at the direction of Magistrate Judge Molly H Cherry on 6/9/2025. (agaz,) (Entered: 06/09/2025)
06/09/2025	50	***DOCUMENT MAILED 49 Order on Motion to Amend/Correct, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 06/09/2025)
06/16/2025	51	NOTICE of Election filed by Debra Nelson. (agaz,) (Entered: 06/16/2025)
07/07/2025	52	ANSWER to 45 Amended Complaint by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky.(Samples, Thomas) (Entered: 07/07/2025)
07/08/2025	53	SCHEDULING ORDER: Motions to Amend Pleadings due by 8/7/2025, Plaintiffs ID of Expert Witness due by 9/8/2025, Defendants ID of Expert Witnesses Due by 10/6/2025, Records Custodian Affidavit due by 10/6/2025, Discovery due by 11/5/2025, Motions due by 1/5/2026, Mediation Due by 12/5/2025. Signed by Magistrate Judge Molly H Cherry on 7/8/2025. (agaz,) (Entered: 07/08/2025)
07/08/2025	54	***DOCUMENT MAILED 53 Scheduling Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 07/08/2025)

07/11/2025	<u>55</u>	MOTION to Strike by Debra Nelson. Response to Motion due by 7/25/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Molly H Cherry. (agaz,) (Entered: 07/11/2025)
07/16/2025	<u>56</u>	MOTION to Compel, MOTION for issuance of Subpoena, by Debra Nelson. Response to Motion due by 7/30/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Exhibit List, # <u>2</u> Exhibit A: Verizon Email, # <u>3</u> Exhibit B: Email to Apple Inc., # <u>4</u> Exhibit C: Microsoft- Email, # <u>5</u> Exhibit D: Emails from Hotmail and Outlook, # <u>6</u> Exhibit E: Email to Google Customer Service, # <u>7</u> Exhibit F: Blocked Google Emails, # <u>8</u> Exhibit G: Jeff Text- Text messages from Jeff Womack, # <u>9</u> Exhibit H: Email Contacting April James, # <u>10</u> Exhibit I: Final Warning Issued on November 14, 2023) Motions referred to Molly H Cherry. (agaz,) (Entered: 07/18/2025)
07/25/2025	<u>57</u>	RESPONSE in Opposition re <u>55</u> MOTION to Strike Response filed by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 8/1/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Samples, Thomas) (Entered: 07/25/2025)
07/25/2025	<u>58</u>	CERTIFICATE OF SERVICE by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky re <u>57</u> Response in Opposition to Motion, (Samples, Thomas) (Entered: 07/25/2025)
07/30/2025	<u>59</u>	RESPONSE to Motion re <u>56</u> MOTION to Compel MOTION for issuance of Subpoena Response filed by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 8/6/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Samples, Thomas) (Entered: 07/30/2025)
07/31/2025	<u>60</u>	MOTION to Substitute Corrected Third Amended Complaint by Debra Nelson. Response to Motion due by 8/14/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Supporting Documents, # <u>2</u> Envelope) Motions referred to Molly H Cherry. (agaz,) (Entered: 08/01/2025)
07/31/2025	<u>61</u>	Certificates of Service for Prior Filings filed by Debra Nelson. (Attachments: # <u>1</u> Envelope) (agaz,) (Entered: 08/01/2025)

08/04/2025	62	REPLY to 59 Response to Motion re 56 MOTION to Compel MOTION for issuance of Subpoena. Response filed by Debra Nelson. (agaz,) (Entered: 08/05/2025)
08/04/2025	63	REPLY to 57 Response to Motion re 55 MOTION to Strike. Response filed by Debra Nelson. (agaz,) (Additional attachment(s) added on 8/4/2025: # 1 Supplemental Reply, # 2 Certificate of Service, # 3 Envelope) (agaz,). (Entered: 08/05/2025)
08/04/2025	64	MOTION to Amend/Correct 45 Amended Complaint, MOTION for Sanctions by Debra Nelson. Response to Motion due by 8/18/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Molly H Cherry. (agaz,) Additional Attachments - Proposed Fourth Amended Complaint can be found at 76 (agaz,). (Entered: 08/05/2025)
08/04/2025	65	NOTICE of Correction (ERRATA SHEET) to All Parties and Their Attorneys of Record filed by Debra Nelson. (Attachments: # 1 Supporting Documents) (agaz,) (Entered: 08/05/2025)
08/04/2025	66	AFFIDAVIT of Debra Nelson by Debra Nelson. (agaz,) (Entered: 08/05/2025)
08/13/2025	68	NOTICE of Inquiry Regarding Plaintiff's Pending Motion filed by Debra Nelson re 56 MOTION to Compel MOTION for issuance of Subpoena. (agaz,) (Entered: 08/14/2025)
08/14/2025	67	RESPONSE in Opposition re 60 MOTION to Substitute Corrected Third Amended Complaint Response filed by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 8/21/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Samples, Thomas) (Entered: 08/14/2025)
08/15/2025	69	REPLY to 67 Response to Motion re 60 MOTION to Substitute Corrected Third Amended Complaint Response filed by Debra Nelson. (agaz,) (Entered: 08/15/2025)
08/18/2025	70	RESPONSE in Opposition re 64 MOTION to Amend/Correct 45 Amended Complaint MOTION for Sanctions Response filed by Curtiss-Wright Corporation, Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 8/25/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Samples, Thomas) (Entered: 08/18/2025)

08/20/2025	71	REPLY to 70 Response to Motion re 64 MOTION to Amend/Correct 45 Amended Complaint. Response filed by Debra Nelson. (Attachments: # 1 Certificate of Service) (agaz,) (Entered: 08/20/2025)
08/21/2025	72	ORDER denying 55 Motion to Strike. Signed by Magistrate Judge Molly H Cherry on 8/21/2025. (agaz,) (Entered: 08/21/2025)
08/21/2025	73	ORDER granting, in part, and denying, in part, 56 Motion to Compel and for Issuance of Subpoena. The Clerk of Court is directed to send six unsigned blank subpoena forms (Form AO 88B Subpoena to Produce Documents, Information, or Objects) to Plaintiff. Further details set forth in Order. Signed by Magistrate Judge Molly H Cherry on 8/21/2025. (agaz,) (Entered: 08/21/2025)
08/21/2025	74	ORDER. Plaintiff's 64 Motion for Rule 11 Sanctions is DENIED. Plaintiff has until September 4, 2025, to submit one signed, complete proposed Fourth Amended Complaint, after which time the Court will rule on Plaintiff's pending Motion to Substitute (ECF No. 60) and Motion to Amend Complaint (ECF No. 64). Signed by Magistrate Judge Molly H Cherry on 8/21/2025. (agaz,) (Entered: 08/21/2025)
08/21/2025	75	***DOCUMENT MAILED 74 Order on Motion for Sanctions, 73 Order on Motion to Compel, Order on Motion for Issuance of Subpoena, and Plaintiff six blank Form AO 88B Subpoena to Produce Documents, Information, or Objects, 72 Order on Motion to Strike placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 08/21/2025)
08/25/2025	76	Additional Attachments to Main Document 64 MOTION to Amend/Correct 45 Amended Complaint MOTION for Sanctions. First attachment description: Proposed Fourth Amended Complaint. (agaz,) (Entered: 08/25/2025)
08/27/2025	78	TEXT ORDER granting 64 Motion to Amend Complaint and denying as moot 60 Motion to Substitute Corrected Third Amended Complaint. Leave to amend a complaint should be freely given when justice so requires. Fed. R. Civ. P. 15(a)(2); see Foreman v. Davis, 371 U.S. 178 (1962); Johnson v. Oroweat Foods Co., 785 F.2d 503, 509 (4th Cir. 1986). Plaintiff's Motion to Amend is hereby GRANTED, and the clerk of court is directed to file the proposed Fourth Amended Complaint (ECF No. 76) on the docket as the FOURTH AMENDED COMPLAINT. Defendants may answer or otherwise plead in

		response to the Fourth Amended Complaint in accordance with the Federal Rules of Civil Procedure. Plaintiff's Motion to Substitute Correct Third Amended Complaint (ECF No. 60) is denied as MOOT. AND IT IS SO ORDERED. Entered at the direction of Magistrate Judge Molly H Cherry on 8/27/2025. (agaz,) (Entered: 08/27/2025)
08/27/2025	79	FOURTH AMENDED COMPLAINT against Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky, filed by Debra Nelson. (agaz,) (Entered: 08/27/2025)
08/27/2025	80	TEXT ORDER. The clerk of court is directed to issue the Third Party Subpoenas submitted by Plaintiff in response to the Court's August 21 Order on the Motion for Issuance of Subpoenas, see ECF No. 73, and to return the issued subpoenas to Plaintiff for prompt service upon the third parties. Plaintiff is reminded that she is responsible for service of the subpoenas, in accordance with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure. Moreover, Plaintiff is responsible for paying all costs associated with the production of documents requested by the subpoenas. AND IT IS SO ORDERED. Entered at the direction of Magistrate Judge Molly H Cherry on 8/27/2025. (agaz,) (Entered: 08/27/2025)
08/27/2025	81	NOTICE Subpoenas issued this date by Clerk and forwarded to Plaintiff for service - re 80 Order. (agaz,) (Entered: 08/27/2025)
08/27/2025	83	***DOCUMENT MAILED 78 Order on Motion for Miscellaneous Relief, Order on Motion to Amend/Correct, 81 Notice Other, Subpoenas and pages 2-4 of entry # 56, 80 Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 08/27/2025)
08/29/2025	85	NOTICE Subpoenas issued this date by Clerk and forwarded to Plaintiff for service - re 80 Order. (agaz,) (Entered: 08/29/2025)
08/29/2025	87	***DOCUMENT MAILED 85 Notice Other, Subpoenas and pages 2-4 of entry # 56, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2 718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 08/29/2025)

09/02/2025	<u>88</u>	PLAINTIFF'S ID OF EXPERT WITNESSES by Debra Nelson. (agaz,) (Entered: 09/03/2025)
09/02/2025	<u>89</u>	NOTICE of Deposition by Debra Nelson. (Attachments: # <u>1</u> Certificate of Service) (agaz,) (Entered: 09/03/2025)
09/03/2025	<u>91</u>	NOTICE Regarding Destruction of Potential Evidence filed by Debra Nelson. (Attachments: # <u>1</u> Exhibit A: Transcript of March 3, 2025, 911 Call (Cell Phone Found), # <u>2</u> Exhibit B: Transcript of December 15, 2024, 911 Call (Strange Man Outside), # <u>3</u> Exhibit C: Transcript of August 14, 2025, 911 Call (Attempts to Recover Evidence)) (agaz,) (Entered: 09/04/2025)
09/09/2025	<u>94</u>	AFFIDAVIT OF SERVICE by Debra Nelson. (agaz,) (Entered: 09/10/2025)
09/10/2025	<u>92</u>	ANSWER to <u>79</u> Amended Complaint by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.(Samples, Thomas) (Entered: 09/10/2025)
09/10/2025	<u>93</u>	MOTION to Dismiss by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. Response to Motion due by 9/24/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Memo in Support)No proposed order.Motions referred to Molly H Cherry.(Samples, Thomas) (Entered: 09/10/2025)
09/10/2025	<u>95</u>	AFFIDAVIT OF SERVICE by Debra Nelson. (agaz,) (Entered: 09/11/2025)
09/11/2025	<u>96</u>	ROSEBORO ORDER directing clerk to forward summary judgment explanation to the opposing party and directing that party to respond in 31 days. Response due to <u>93</u> MOTION to Dismiss by 10/14/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Signed by Magistrate Judge Molly H Cherry on 9/11/2025. (agaz,) (Entered: 09/11/2025)
09/11/2025	<u>97</u>	***DOCUMENT MAILED <u>96</u> Roseboro Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 09/11/2025)

09/11/2025	<u>98</u>	RESPONSE in Opposition re <u>93</u> MOTION to Dismiss Response filed by Debra Nelson. Reply to Response to Motion due by 9/18/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (agaz,) Supplemental response can be found at <u>110</u> (agaz,). (Entered: 09/12/2025)
09/11/2025	<u>99</u>	MOTION to Compel Confirmation of Depositions by Debra Nelson. Response to Motion due by 9/25/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Molly H Cherry. (agaz,) (Entered: 09/12/2025)
09/12/2025	<u>100</u>	MOTION to Compel Discovery Responses by Debra Nelson. Response to Motion due by 9/26/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Plaintiff's First Set of Interrogatories and Request for Production to Defendants, # <u>2</u> Supporting Documents) Motions referred to Molly H Cherry. (agaz,) (Entered: 09/12/2025)
09/12/2025	<u>101</u>	MOTION to Appoint Counsel by Debra Nelson. Response to Motion due by 9/26/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Memorandum of Law in Support) Motions referred to Molly H Cherry. (agaz,) (Entered: 09/12/2025)
09/12/2025	<u>102</u>	NOTICE of Errata filed by Debra Nelson. (agaz,) (Entered: 09/12/2025)
09/12/2025	<u>103</u>	MOTION to Compel Apple Inc. to Produce Documents by Debra Nelson. Response to Motion due by 9/26/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Supporting Documents) Motions referred to Molly H Cherry. (agaz,) Supplement can be found at <u>115</u> (agaz,). (Entered: 09/12/2025)
09/16/2025	<u>105</u>	MOTION to Compel Party Production, to Enforce Non-Party Subpoena Duces Tecum, and for Entry Onto Land Inspection Under Rule 34 by Debra Nelson. Response to Motion due by 9/30/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Supporting Documents) Motions referred to Molly H Cherry. (agaz,) Supplement can be found at <u>112</u> (agaz,). (Entered: 09/17/2025)

09/16/2025	106	NOTICE of Non-Party Subpoenas to Service Providers (FRCP 45(a)(4)) filed by Debra Nelson. (agaz,) (Entered: 09/17/2025)
09/16/2025	107	NOTICE of Non-Party Subpoenas Under Fed. R. Civ. P. 45(a)(4) filed by Debra Nelson. (agaz,) (Entered: 09/17/2025)
09/17/2025	109	RESPONSE in Opposition re 100 MOTION to Compel, 99 MOTION to Compel Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 9/24/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit A - Defendants' Discovery Responses, # 2 Exhibit B - Correspondence with Plaintiff Nelson)(Samples, Thomas) (Entered: 09/17/2025)
09/17/2025	110	SUPPLEMENT by Debra Nelson to 98 Response in Opposition to Motion. (Attachments: # 1 Certificate of Service, # 2 Exhibit A: Termination Letter, # 3 Exhibit B: SCHAC/EEOC charge) (agaz,) (Entered: 09/18/2025)
09/18/2025	112	SUPPLEMENT by Debra Nelson to 105 MOTION to Compel. (agaz,) (Entered: 09/18/2025)
09/18/2025	113	REPLY to Response to Motion re 93 MOTION to Dismiss Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. (Samples, Thomas) (Entered: 09/18/2025)
09/22/2025	114	MOTION to Compel by Debra Nelson. Response to Motion due by 10/6/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Supporting Documents, # 2 Certificate of Service) Motions referred to Molly H Cherry. (agaz,) (Entered: 09/22/2025)
09/22/2025	115	SUPPLEMENT by Debra Nelson to 103 MOTION to Compel. (Attachments: # 1 Supporting Documents, # 2 Certificate of Service) (agaz,) (Entered: 09/22/2025)
09/23/2025	116	DELETION OF DOCKET ENTRY NUMBER 111 Reason: Documents docketed at 110 . (agaz,) (Entered: 09/23/2025)

09/25/2025	117	TEXT ORDER denying 99 Motion to Compel Confirmation of Depositions. In her Motion, Plaintiff states that she noticed depositions of key witnesses for October 8, 2025, but that Defendants had not confirmed these depositions as of September 11, 2025, the date Plaintiff filed her Motion. ECF No. 99. In their Response, Defendants state that they have been in communication with Plaintiff regarding the depositions and are working to confirm whether the witnesses are available on October 8 or some later date in October. ECF No. 109. Upon review, the Court finds Plaintiff's Motion to be premature. Plaintiff has not pointed to any rule Defendants have allegedly violated that would give rise to a Rule 37 motion, as the depositions are not scheduled to occur until next month (such that no deponent has failed to answer a question under Rule 30) and there is no evidence before the Court that Plaintiff has properly noticed a Rule 30(b)(6) deposition requiring designation. See Fed. R. Civ. P. 37(a)(3)(B) (providing instances when a motion to compel can be made for violation of Rule 30). Accordingly, the Motion to Compel Confirmation of Depositions (ECF No. 99) is DENIED as premature. Entered at the direction of Magistrate Judge Molly H Cherry on 9/25/2025. (agaz,) (Entered: 09/25/2025)
09/25/2025	118	TEXT ORDER denying 100 Motion to Compel Discovery Responses. Plaintiff filed her Motion to Compel on September 12, 2025, seeking an order compelling Defendants to serve responses to her First Requests for Production that she served on Defendants on August 14, 2025, and seeking an order directing Defendants to provide timely responses to Plaintiff's Second Request for Production served on September 3, 2025. ECF No. 100. Plaintiff also seeks an award of the costs associated with bringing this motion. Id. In response, Defendants argue that Plaintiff's Motion was premature, as it was filed before the response deadlines for her discovery requests had run. ECF No. 109. Defendants also filed proof that they served responses to Plaintiff's first discovery requests on September 12, 2025, the same day Plaintiff filed her premature motion and BEFORE their deadline. ECF Nos. 109, 109-1. Defendants also filed evidence that Plaintiff refused to withdraw her Motion to Compel. Id. Defendants seek an award of the costs associated with having to respond to Plaintiff's premature and moot motion. ECF No. 109.

Pursuant to Rule 34 of the Federal Rules of Civil Procedure, Defendants had 30 days after service of the discovery requests to serve their responses on Plaintiff. Fed. R. Civ. P. 34(b)(2)(A). Thirty days after August 14, 2025, was September 13, 2025, the day AFTER Plaintiff filed her Motion to Compel. Thus, Plaintiff's Motion to Compel was premature, as it was filed before Defendants' response deadline had run. Moreover, pursuant to Rule 6, because Defendants' response deadline fell on a Saturday, their response period "continue[d] to run until the end of the next day that is not a Saturday, Sunday, or legal holiday," i.e., until Monday, September 15, 2025. Fed. R. Civ. P. 6(a)(1)(C) (explaining how to compute time under the Federal Rules of Civil Procedure). Finally, Defendants' deadline to serve responses to Plaintiff's Second Requests, which she served in September, does not run until October. Plaintiff appears to have been well aware of these deadlines, as she noted in her Motion that the responses to her First Request "were due by September 13, 2025," and the responses to her Second Request "are due by October 3, 2025." ECF No. 100 at 1. Thus, Plaintiff's Motion to Compel was knowingly and manifestly premature and is, therefore, DENIED. Plaintiff's request for an award of costs is DENIED.

In consideration of Plaintiff's pro se status, the Court declines to award costs to Defendants at this time. However, Plaintiff is reminded that, pursuant to Rule 11 of the Federal Rules of Civil Procedure, "[b]y presenting to the court a pleading, written motion, or other paper[,],... [an] unrepresented party certifies that... (1) it is not being presented for any improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; [and] (2) the claims, defenses, and other legal contentions are warranted by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law or for establishing new law...." Fed. R. Civ. P. 11(b). Moreover, sanctions may be imposed on a party for violating Rule 11(b). Fed. R. Civ. P. 11(c). Premature discovery motions seeking court orders and costs against an opposing party before the opposing party's response deadline has even passed could be construed as frivolous or as being presented for an improper purpose, and the Court cautions Plaintiff to avoid such premature motions in the future. AND IT IS SO ORDERED.

		Entered at the direction of Magistrate Judge Molly H Cherry on 9/25/2025. (agaz,) (Entered: 09/25/2025)
09/25/2025	<u>119</u>	ORDER denying <u>101</u> Motion to Appoint Counsel. Signed by Magistrate Judge Molly H Cherry on 9/25/2025. (agaz,) (Entered: 09/25/2025)
09/25/2025	120	NOTICE of Hearing: Status Conference set for 10/7/2025 11:00 AM in Charleston Courtroom #5, U. S. Court House, 85 Broad St, Charleston before Magistrate Judge Molly H Cherry. (egra,) (Entered: 09/25/2025)
09/25/2025	121	***DOCUMENT MAILED 118 Order on Motion to Compel, 117 Order on Motion to Compel, 120 Notice of Hearing, <u>119</u> Order on Motion to Appoint Counsel placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 09/25/2025)
09/25/2025	122	TEXT ORDER. It has come to the Court's attention that Plaintiff has submitted at least one proposed subpoena duces tecum for issuance by the clerk of court that lists the place of production as the "Clerk of Court" at the federal courthouse in Charleston, South Carolina. Discovery, including document production in response to a subpoena, should not be produced to the clerk of court. See L. Civ. R. 5.01, D.S.C. (providing that discovery material "shall be served upon other counsel or parties, but shall not be filed with the court"). Therefore, a subpoena directing a third party to produce documents, electronically stored information, or objects to the Clerk of Court or to the court's mailing address is not proper. AND IT IS SO ORDERED. Entered at the direction Magistrate Judge Molly H Cherry on 9/25/2025. (agaz,) (Entered: 09/25/2025)
09/25/2025	123	NOTICE Subpoenas issued this date by Clerk and forwarded to Plaintiff for service. (agaz,) (Entered: 09/25/2025)
09/25/2025	125	***DOCUMENT MAILED 123 Notice Other, & Issued Subpoenas, 122 Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 09/25/2025)
09/26/2025	<u>126</u>	NOTICE of Appearance by Brian C Duffy on behalf of Apple, Inc. (Duffy, Brian) (Entered: 09/26/2025)

09/26/2025	127	MOTION to Appear Pro Hac Vice by Nury Siekkinen (Filing fee \$ 350 receipt number ASCDC-12774631) by Apple, Inc.. Response to Motion due by 10/10/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Affidavit Application for Pro Hac Vice, # 2 Supporting Documents Certificate of Good Standing, # 3 Proposed Order Proposed Order)No proposed order.Motions referred to Molly H Cherry.(Duffy, Brian) (Entered: 09/26/2025)
09/26/2025	128	RESPONSE in Opposition re 103 MOTION to Compel Response filed by Apple, Inc..Reply to Response to Motion due by 10/3/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit Apple Letter to Plaintiff, # 2 Exhibit Declaration of Custodian of Records of Apple Inc., # 3 Exhibit Legal Process Guidelines)(Duffy, Brian) (Entered: 09/26/2025)
09/26/2025	129	MOTION for Protective Order <i>Under Federal Rule of Civil Procedure 26(c)</i> by Apple, Inc.. Response to Motion due by 10/10/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. No proposed order.Motions referred to Molly H Cherry.(Duffy, Brian) (Entered: 09/26/2025)
09/26/2025	130	NOTICE of Appearance by Robert Lewis Wehrman on behalf of Apple, Inc. (Wehrman, Robert) (Entered: 09/26/2025)
09/26/2025	131	NOTICE of Service of Subpoena Responses filed by Debra Nelson. (Attachments: # 1 Certificate of Service) (agaz,) (Entered: 09/29/2025)
09/26/2025	132	CERTIFICATE OF SERVICE by Debra Nelson (agaz,) (Entered: 09/29/2025)
09/30/2025	133	RESPONSE in Opposition re 105 MOTION to Compel Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 10/7/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit A - Plaintiff's Third Request for Production, # 2 Exhibit B - Plaintiff's First Request for Admission)(Samples, Thomas) (Entered: 09/30/2025)
09/30/2025	134	NOTICE of Service of Subpoena on Hunt Law LLC. (agaz,) (Entered: 10/01/2025)

09/30/2025	135	RESPONSE in Opposition re 129 MOTION for Protective Order <i>Under Federal Rule of Civil Procedure 26(c)</i> . Response filed by Debra Nelson. Reply to Response to Motion due by 10/7/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (agaz,) (Additional attachment(s) added on 10/1/2025: # 1 Proposed Order) (agaz,). (Entered: 10/01/2025)
10/02/2025	138	MOTION to Expedite Reissuance of Subpoenas by Debra Nelson. Response to Motion due by 10/16/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Molly H Cherry. (agaz,) (Entered: 10/02/2025)
10/02/2025	139	REPLY to 133 Response to Motion re 105 MOTION to Compel. Response filed by Debra Nelson. (Attachments: # 1 Certificate of Service) (agaz,) (Entered: 10/02/2025)
10/02/2025	140	Renewed MOTION to Compel by Debra Nelson. Response to Motion due by 10/16/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Ex. A - Plaintiffs First Discovery Requests (Aug. 14, 2025), # 2 Ex. B - Defendants' Sept. 12, 2025 Responses (Interrogatories & RFPs), # 3 Ex. C - Plaintiffs Meet and Confer Letter (Sept. 30, 2025), # 4 Ex. D- Final Warning (11/14/23), # 5 Ex. E - Coworker text messages (11/15/23), # 6 Ex. F - Lanier July 27, 2023 email confirming July 12 meeting, # 7 Ex. G - Relevant July 17, 2023 email thread) Motions referred to Molly H Cherry. (agaz,) (Entered: 10/02/2025)
10/02/2025	141	NOTICE Subpoenas reissued this date by Clerk and forwarded to Plaintiff for service. (agaz,) (Entered: 10/02/2025)
10/02/2025	143	ORDER granting 127 Motion to Appear Pro Hac Vice re Nury Siekkinen for Apple, Inc. Signed by Honorable David C Norton on 10/02/2025.(hcor,) (Entered: 10/02/2025)
10/02/2025	144	MOTION for Extension of Time to File Response/Reply as to 135 Response in Opposition to Motion, by Apple, Inc.. Response to Motion due by 10/16/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit A - Notice of Electronic Filing, # 2 Exhibit B - Apple Meet and Confer Letter, # 3 Proposed Order Proposed

		Order)Proposed order is being emailed to chambers with copy to opposing counsel.Motions referred to Molly H Cherry.(Wehrman, Robert) (Entered: 10/02/2025)
10/03/2025	145	TEXT ORDER granting 144 Non-Party Apple Inc.'s Motion for Extension of Time. The deadline for Apple to file a Reply to Plaintiff's Response in Opposition to Apple's Motion for Protective Order is hereby extended to October 10, 2025. AND IT IS SO ORDERED. Entered at the direction of Magistrate Judge Molly H Cherry on 10/3/2025. (agaz,) (Entered: 10/03/2025)
10/03/2025	146	***DOCUMENT MAILED 145 Order on Motion for Extension of Time to File Response/Reply, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 10/03/2025)
10/03/2025	147	CERTIFICATE OF SERVICE by Apple, Inc. re 144 MOTION for Extension of Time to File Response/Reply as to 135 Response in Opposition to Motion, (Wehrman, Robert) (Entered: 10/03/2025)
10/06/2025	148	NOTICE OF RESCHEDULED HEARING **TIME CHANGE ONLY** Status Conference set for 10/7/2025 10:30 AM in Charleston Courtroom #5, U. S. Court House, 85 Broad St, Charleston before Magistrate Judge Molly H Cherry. (egra,) (Entered: 10/06/2025)
10/06/2025	149	NOTICE of Appearance by Robert W Whelan on behalf of Microsoft Corporation (Whelan, Robert) (Entered: 10/06/2025)
10/06/2025	150	RESPONSE in Opposition re 114 MOTION to Compel Response filed by Microsoft Corporation.Reply to Response to Motion due by 10/14/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit Exhibit 1 Wasserstein Declaration, # 2 Exhibit Exhibit 2 Van Scyoc Declaration)(Whelan, Robert) (Entered: 10/06/2025)
10/07/2025	151	Case Reassigned to Honorable Richard M Gergel. Honorable David C Norton no longer assigned to the case. (bshr,) (Entered: 10/07/2025)
10/07/2025	152	NOTICE OF CHANGE OF CASE NUMBER: New Case Number is 2:25-cv-00405-RMG-MHC. (agaz,) (Entered: 10/07/2025)

10/07/2025	153	***DOCUMENT MAILED 152 Notice Change of Case Number, 151 Case Reassigned placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (agaz,) (Entered: 10/07/2025)
10/07/2025	154	NOTICE of Service of Subpoena to Google LLC. and to Microsoft Corporation. (agaz,) (Entered: 10/07/2025)
10/07/2025	155	MINUTE ENTRY. Status conference regarding discovery held before Magistrate Judge Molly H. Cherry. Plaintiff appeared on her own behalf, and attorney Chase Samples appeared on behalf of Defendants. The parties were encouraged to communicate regarding setting depositions and resolving discovery issues, and they were reminded of scheduling order deadlines and the mediation requirement. (egra,) (Entered: 10/07/2025)
10/07/2025	156	***DOCUMENT MAILED 155 Status Conference, placed in U.S. Mail from Charleston Clerks Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405 (egra,) (Entered: 10/07/2025)
10/07/2025	157	Case Reassigned to Magistrate Judge Mary Gordon Baker. Magistrate Judge Molly H Cherry no longer assigned to the case. (bshr,) (Entered: 10/07/2025)
10/07/2025	158	NOTICE OF CHANGE OF CASE NUMBER to 2:25-cv-00405-RMG-MGB. (dgar) (Entered: 10/07/2025)
10/07/2025	159	***DOCUMENT MAILED 157 Case Reassigned, 158 Notice Change of Case Number placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/07/2025)
10/07/2025	160	TEXT ORDER. The record shows that the subpoenas at issue in Plaintiff's Motion to Expedite Reissuance of Subpoenas (Dkt. No. 138) were reissued by the Clerk of Court on October 2, 2025. (Dkt. Nos. 141; 142.) Accordingly, Plaintiff's 138 Motion is MOOT. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/7/2025.(dgar) (Entered: 10/07/2025)
10/07/2025	161	***DOCUMENT MAILED 160 Order on Motion to Expedite, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/07/2025)

10/08/2025	162	NOTICE of Withdrawal of Renewed Motion to Compel. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 10/08/2025)
10/08/2025	163	MOTION for RE-issuance of Subpoena by Debra Nelson. Response to Motion due by 10/22/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Mary Gordon Baker.(dgar) (Entered: 10/08/2025)
10/08/2025	164	NOTICE of Service of Subpoena on Hunt Law LLC via South Carolina Secretary of State, filed by Debra Nelson. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 10/08/2025)
10/08/2025	166	CERTIFICATE OF SERVICE by Microsoft Corporation re 150 Response in Opposition to Motion, (Whelan, Robert) (Entered: 10/08/2025)
10/09/2025	167	NOTICE of Appearance by Andrew Wesley Countryman on behalf of Hunt Law LLC, Bonnie Travaglio Hunt (Countryman, Andrew) (Entered: 10/09/2025)
10/09/2025	168	TEXT ORDER. Plaintiff has filed a notice withdrawing her Renewed Motion to Compel at Dkt. No. 140. (Dkt. No. 162.) Accordingly, the Court DISMISSES Plaintiff's 140 "Renewed Motion to Compel Party Discovery Responses, to Enforce Non-Party Subpoena Duces Tecum, and for Entry-Onto-Land Inspection Under Rule 34." IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/9/2025.(dgar) (Entered: 10/09/2025)
10/09/2025	169	***DOCUMENT MAILED 168 Order on Motion to Compel, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/09/2025)
10/09/2025	171	NOTICE of Service of Subpoena on Hunt Law LLC via South Carolina Secretary of State, filed by Debra Nelson. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 10/09/2025)
10/09/2025	172	OBJECTIONS by Bonnie Travaglio Hunt, Hunt Law LLC to 171 Notice Other. (Attachments: # 1 Exhibit order denying tro)(Countryman, Andrew) (Entered: 10/09/2025)

10/10/2025	173	RENEWED MOTION to Compel Apple Inc. to Produce Documents by Debra Nelson. Response to Motion due by 10/24/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit A- Email, # 2 Exhibit B- Gmail, # 3 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 10/10/2025)
10/10/2025	174	REPLY to Response to Motion re 129 MOTION for Protective Order <i>Under Federal Rule of Civil Procedure 26(c)</i> Response filed by Apple, Inc.. (Attachments: # 1 Exhibit A - Meet and Confer Letter, # 2 Exhibit B - Apple Production Letter, # 3 Exhibit C - Email to Nelson)(Wehrman, Robert) (Entered: 10/10/2025)
10/14/2025	175	CERTIFICATE OF SERVICE by Apple, Inc. re 174 Reply to Response to Motion, (Wehrman, Robert) (Entered: 10/14/2025)
10/14/2025	176	MOTION TO STRIKE NON-PARTY COUNSEL'S IMPROPER OBJECTION AND for Protective Order TO RESTRICT REPETITIVE AND IRRELEVANT FILINGS (Response to Motion due by 10/28/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45.), MOTION to Strike by Debra Nelson. (Attachments: # 1 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 10/14/2025)
10/14/2025	177	PLAINTIFF'S SUPPLEMENTAL MOTION to Compel AND REQUEST For Sanctions (Response to Motion due by 10/28/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45.) by Debra Nelson. (Attachments: # 1 Exhibit A- Notice of Withdrawal, # 2 Exhibit B- Email, # 3 Exhibit C- Text Screenshots, # 4 Exhibit D- Text Screenshots 2, # 5 Exhibit E- Text Screenshots 3, # 6 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 10/14/2025)
10/14/2025	178	REPLY 135 to Response to Motion re 129 MOTION for Protective Order <i>Under Federal Rule of Civil Procedure 26(c)</i> Response filed by Debra Nelson. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 10/15/2025)
10/15/2025	179	RESPONSE in Opposition re 176 MOTION for Protective Order MOTION to Strike Response filed by Bonnie Travaglio Hunt, Hunt Law LLC.Reply to Response to Motion due by 10/22/2025 Add an additional 3

		days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Countryman, Andrew) (Entered: 10/15/2025)
10/15/2025	180	Notice to the Court and Motion for Limited Relief Regarding Procedural Defects Prejudicing Pro Se Plaintiff by Debra Nelson. Response to Motion due by 10/29/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit A- Text Order, # 2 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 10/16/2025)
10/15/2025	181	NOTICE of filing, filed by Debra Nelson. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 10/16/2025)
10/15/2025	182	NOTICE of filing, filed by Debra Nelson. (Attachments: # 1 Exhibit A- King County Superior Court Case, # 2 Exhibit B- Proposed Order)(dgar) (Additional attachment(s) added on 10/16/2025: # 3 Certificate of Service) (dgar,). (Entered: 10/16/2025)
10/17/2025	183	TEXT ORDER denying 114 Motion to Compel. On September 22, 2025, Plaintiff filed a Motion to Compel (Dkt. No. 114) seeking a Court order "compelling nonparty Microsoft Corporation to comply with Plaintiff's subpoena duces tecum dated September 12, 2025." (Id. at 1.) In a response dated October 6, 2025, non-party Microsoft Corporation ("Microsoft") contends, <i>inter alia</i>, that Plaintiff's motion should be denied because it is moot and premature, and was filed in the wrong forum. (Dkt. No. 150 at 1.) Upon review, the undersigned agrees. First, Plaintiff filed her Motion to Compel (Dkt. No. 114) before Microsoft's time to respond expired. (See, e.g., Dkt. Nos. 150-1, 150-2.) As the Court has already informed Plaintiff, motions to compel filed before the response deadline has run will be denied as premature. (See Dkt. No. 118.) Further, as Microsoft correctly notes, Federal Rule of Civil Procedure 45 requires that "when a party seeks to compel a non-party's action pursuant to a subpoena duces tecum, the party must file its motion to compel in the district where the sought documents are located, not in the district where the subpoena was issued." <i>Oakwood Prods., Inc. v. SWK Techs., Inc.</i>, No. 9:20-CV-04107-DCN, 2022 WL 7108844, at

		*8 (D.S.C. Oct. 12, 2022). Here, Plaintiff's Motion to Compel (Dkt. No. 114) fails to comply with the jurisdictional requirements of Rule 45(d)(2)(B)(i), and Microsoft has explicitly declined to consent to this Court's jurisdiction. (Dkt. No. 150 at 6.) Accordingly, Plaintiff's Motion to Compel must be DENIED pursuant to Federal Rule of Civil Procedure 45. Even assuming, arguendo, that Plaintiff could overcome the aforementioned defects, the Motion to Compel (Dkt. No. 114) is MOOT. Indeed, Microsoft's response states that "Microsoft has determined that there are no responsive documents within its possession, custody, or control, after conducting a reasonable investigation and complying with all applicable preservation obligations." (Dkt. No. 150 at 4.) Microsoft has attached evidence confirming the same as exhibits to its response (Dkt. Nos. 150-1, 150-2.) The Court cannot compel Microsoft to furnish information it does not possess. See, <i>e.g.</i>, <i>Moore v. BPS Direct, LLC</i>, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) ("It is axiomatic that a party cannot be ordered to produce documents that do not exist."); <i>Jackson v. Wade</i>, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D. Va. Apr. 19, 2021), <i>appeal dismissed</i>, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) ("[A] subpoena can only direct an individual or entity to produce materials in their 'possession, custody, or control,' and thus cannot compel an entity to create a new document... out of whole cloth."). As such, Plaintiff's Motion to Compel (Dkt. No. 114) would alternatively be DISMISSED AS MOOT. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)
10/17/2025	184	***DOCUMENT MAILED 183 Order on Motion to Compel, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/17/2025)
10/17/2025	185	TEXT ORDER granting <u>163</u> Motion to Reissue Subpoenas; denying <u>180</u> Motion for Limited Relief. On October 8, 2025, Plaintiff filed a Motion to Reissue Subpoenas pertaining to subpoenas she previously issued to non-parties Verizon Wireless and Motorola Solutions, Inc. (Dkt. No. 163.) In her Motion, Plaintiff explains that "Verizon's Subpoena Compliance Department [informed her] that production could not be directed to Plaintiff's home address and must instead be returnable to... a third-party custodian." (Id. at 1.) Plaintiff explains that she has now designated a third party entity as her records

		custodian and therefore asks that the Court reissue an updated subpoena to Verizon Wireless. (Id.) Plaintiff further explains that her original subpoena to "Motorola Solutions, Inc." identified the wrong party and asks that the Court issue a subpoena for "Motorola Mobility, LLC" instead. (Id.) Upon review, the undersigned finds that Plaintiff's Motion to Reissue Subpoenas (Dkt. No. 163) should be GRANTED. The Clerk of Court is directed to issue the Third Party Subpoenas submitted by Plaintiff in connection with her Motion (Dkt. No. 170), and to return the issued subpoenas to Plaintiff for prompt service upon the third parties. Plaintiff is reminded that she is responsible for service of the subpoenas, in accordance with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure. Moreover, Plaintiff is responsible for paying all costs associated with the production of documents requested by the subpoenas. Further, it is not yet clear that non-parties Verizon Wireless and Motorola Solutions, Inc. will be unable to comply with the newly issued subpoenas by the November 5, 2025 discovery deadline. As such, Plaintiff's request to extend the discovery deadline on this basis (Dkt. No. 180) is DENIED, without prejudice and with leave to refile should non-parties Verizon Wireless and Motorola Solutions, Inc. indicate they are unable to comply with the newly issued subpoenas by November 5, 2025. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)
10/17/2025	186	REFERENCE ORDER 185 denying 180 Motion Limited Relief. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(dgar) (Entered: 10/17/2025)
10/17/2025	187	NOTICE Subpoenas reissued this date by Clerk and forwarded to Plaintiff for service. (dgar) (Entered: 10/17/2025)
10/17/2025	189	***DOCUMENT MAILED 185 Order on Motion for Issuance of Subpoena, 186 Order on Motion for Miscellaneous Relief, 87 Notice Other, Subpoenas placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/17/2025)

10/17/2025	190	TEXT ORDER denying 177 Motion to Compel; denying 177 Motion for Sanctions. On October 14, 2025, Plaintiff filed a Motion to Compel and Request for Sanctions (Dkt. No. 177) taking issue with Defense counsel's purported failure to produce "Curtiss-Wright employee Jeff Womack" for deposition. (Id. at 2.) Plaintiff specifically claims that Defense counsel has repeatedly misstated that Mr. Womack is on medical leave until November 2, 2025 and is therefore unable to be deposed until after that date. (See generally Dkt. Nos. 177, 177-2.) Accordingly, Plaintiff asks the Court to compel Mr. Womack's deposition and impose sanctions on Defense counsel for "bad-faith misrepresentations and interference with witness testimony." (Dkt. No. 177 at 34.) In support of her motion, Plaintiff has attached various exhibits, including her email correspondence with Defense counsel and screenshots of her personal text messages with Mr. Womack. (Dkt. Nos. 177-2, 177-3, 177-4, 177-5.) Contrary to Plaintiff's assertions, the exhibits attached to Plaintiff's motion indicate that Defense counsel has agreed to produce Mr. Womack for deposition upon his return to work and in advance of the discovery deadline, November 5, 2025. (Dkt. No. 177-2 at 5, 7, 8.) In light of Defense counsel's clear willingness to allow Plaintiff to depose Mr. Womack in advance of the discovery deadline, the undersigned sees no reason to compel Mr. Womack's deposition or impose sanctions on Defense counsel. Plaintiff's Motion to Compel and Request for Sanctions (Dkt. No. 177) is therefore DENIED. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/17/2025.(kman,) (Entered: 10/17/2025)
10/17/2025	191	***DOCUMENT MAILED 190 Order on Motion to Compel, Order on Motion for Sanctions, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/17/2025)
10/20/2025	192	ORDER denying 105 Motion to Compel; denying 176 Motion for Protective Order; denying 176 Motion to Strike. Signed by Magistrate Judge Mary Gordon Baker on 10/20/2025.(dgar) (Entered: 10/20/2025)
10/20/2025	193	***DOCUMENT MAILED 192 Order on Motion to Compel, Order on Motion for Protective Order, Order on Motion to Strike placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/20/2025)

10/21/2025	194	ORDER denying 103 Motion to Compel; granting 129 Motion for Protective Order; denying 173 Motion to Compel. Signed by Magistrate Judge Mary Gordon Baker on 10/21/2025.(dgar) (Entered: 10/21/2025)
10/21/2025	195	***DOCUMENT MAILED 194 Order on Motion to Compel, Order on Motion for Protective Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/21/2025)
10/21/2025	196	OBJECTIONS by Bonnie Travaglio Hunt, Hunt Law LLC. (Attachments: # 1 Exhibit subpoena)(Countryman, Andrew) (Entered: 10/21/2025)
10/27/2025	197	NOTICE "OF PROCEDURAL PREJUDICE AND REQUEST FOR REIMBURSEMENT OF COSTS (<i>Verizon and Motorola Subpoenas</i>)" (sshe,) (Entered: 10/27/2025)
10/27/2025	198	MOTION for Extension of Time to Complete Discovery "Plaintiff's Motion for Extension of Discovery Deadline and Reissuance of Subpoenas (<i>Verizon Wireless and Motorola Mobility</i>)" by Debra Nelson. Response to Motion due by 11/10/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. No proposed order.Motions referred to Mary Gordon Baker.(sshe,) (Main Document 198 replaced on 10/27/2025) (sshe,). (Additional attachment(s) added on 10/27/2025: # 1 Exhibit A Judge Baker's Text Order (Dkt 185), # 2 Exhibit B NJ Superior Court Deficiency Notice, # 3 Exhibit C Plaintiff's Motion to Expedite Subpoenas and Motion to Reissue) (sshe,). Modified on 10/27/2025 to separate main document and attached Exhibits (sshe,). (Entered: 10/27/2025)
10/27/2025	199	MOTION for Recusal "Plaintiff's Motion for Recusal of Magistrate Judge Mary Gordon Baker <i>and Request to Vacate Prior Orders</i> " by Debra Nelson. Response to Motion due by 11/10/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit A Motion to Expedite Subpoenas, # 2 Exhibit B Deficiency Notice from NJ Superior Court, # 3 Exhibit C October 17, 2025 Order (Dkt 185), # 4 Exhibit D October 20, 2025 Order (Dkt 192), # 5 Exhibit E Countryman Objection to Subpoena, # 6 Exhibit F Notice of Procedural Prejudice and Request

		for Reimbursement of Costs)No proposed order.Motions referred to Mary Gordon Baker.(sshe,) (Entered: 10/27/2025)
10/30/2025	200	TEXT ORDER granting <u>198</u> Motion for Extension of Time to Complete Discovery. On October 27, 2025, Plaintiff filed a Motion for Extension of Time to Complete Discovery requesting that the Court "extend the discovery period to December 5, 2025, for the limited purposed of completing third-party subpoena compliance with Verizon Wireless and Motorola Mobility, LLC" and that the Court "direct the Clerk of Court to reissue the subpoenas to Verizon Wireless and Motorola Mobility, LLC with updated production/compliance dates of December 5, 2025." (Dkt. No. 198.) In her motion, Plaintiff explains that this extension is necessary due to mailing delays and "rejection of the New Jersey domestication filing." (Id.) Upon review, the Court finds that Plaintiff's motion should be GRANTED. The Clerk of Court is instructed to reissue the requested subpoenas and mail them to Plaintiff at the address indicated on the docket. The undersigned notes that Plaintiff does not explain her reasons for pursuing the "domestication" procedure Plaintiff references in her motion, but it does not appear applicable to the subpoenas at issue here. See, e.g., Calixte v. Simpson, No. 1:21-MC-12, 2022 WL 2643502, at *1 (S.D. Ohio Jan. 5, 2022) ("The [Uniform Interstate Depositions and Discovery Act] provides this Court no authority to compel the requested discovery because it applies only in state court, not federal court."); Bullard v. Norfolk S. Ry. Co., No. 7:23-CV-00930-LSC, 2024 WL 6874546, at *1 (N.D. Ala. July 10, 2024) (finding that "UIDDA does not apply in this case [because a] federal court does not fall under the [] statute's definition of a foreign jurisdiction from which a foreign subpoena is issued" and that "model UIDDA legislation... comments that the Act is limited to discovery in state courts." (internal quotation marks and citations omitted)). Rather, Plaintiff is responsible for service of the subpoenas in accordance with the provisions set forth in Rule 45 of the Federal Rules of Civil Procedure and is responsible for paying all costs associated with the production of documents requested by the subpoenas. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 10/30/2025.(kman,) (Entered: 10/30/2025)
10/30/2025	201	NOTICE Subpoenas reissued this date by Clerk and forwarded to Plaintiff for service. (dgar) (Entered: 10/30/2025)

10/30/2025	203	***DOCUMENT MAILED 201 Notice Other, 200 Order on Motion for Extension of Time to Complete Discovery, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/30/2025)
10/30/2025	204	ORDER denying 199 Motion for Recusal. Because Plaintiff has presented no valid basis for disqualification, her motion (Dkt. No. 199) is DENIED. However, in an abundance of caution and in deference to Plaintiff's pro se status, the undersigned will allow Plaintiff additional time to request the information in the nonparty subpoena at issue in Plaintiff's motion from Defendants. Defendants shall provide this information to Plaintiff by December 5, 2025. To the extent no such information exists, Defendants shall provide Plaintiff with an affidavit stating the same. Signed by Magistrate Judge Mary Gordon Baker on 10/30/2025.(dgar) (Entered: 10/30/2025)
10/30/2025	205	***DOCUMENT MAILED 204 Order on Motion for Recusal, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 10/30/2025)
11/05/2025	206	ADR STATEMENT/CERTIFICATION by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky(Samples, Thomas) (Entered: 11/05/2025)
11/05/2025	207	MOTION to Compel by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. Response to Motion due by 11/19/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit A - DEF Curtiss Wright's First Requests for Production of Documents, # 2 Exhibit B - DEF Curtiss Wright's First Set of Interrogatories, # 3 Exhibit C - Answers to Defendants First Set of Production, # 4 Exhibit D - Answers to Defendants First Set of Interrogatories, # 5 Exhibit E - Amended Deposition Notice, # 6 Exhibit F - Deficiency Letter re First Discovery Responses)No proposed order.Motions referred to Mary Gordon Baker.(Samples, Thomas) (Main Document 207 replaced on 11/6/2025) (dgar,). (Entered: 11/05/2025)
11/05/2025	209	NOTICE filed by Debra Nelson. (Attachments: # 1 Exhibit A1- Micosoft Subpoena, # 2 Exhibit B1- Google Subpoena, # 3 Exhibit C1- American Honda Subpoena, # 4 Exhibit C2- UPS Receipt, # 5 Exhibit D1- District

		of Illinois Subpoena, # 6 Exhibit D2- USPS Receipt 2, # 7 Exhibit E1- Motion to Enforce Subpoena to Verizon Wireless, # 8 Exhibit E2- USPS Receipt 3, # 9 Certificate of Service)(dgar) (Entered: 11/06/2025)
11/05/2025	210	MOTION to Compel, MOTION for Protective Order, MOTION for Sanctions (Response to Motion due by 11/19/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45.) by Debra Nelson. (Attachments: # 1 Exhibit A- Gmail, # 2 Exhibit B- Jackson Lewis Letter, # 3 Exhibit C- Jackson Lewis Letter 2, # 4 Exhibit D- Jackson Lewis Certified Mail, Return Receipt Requested, # 5 Exhibit E- Defendant's Responses to Plaintiff's First Set of Interrogatories, # 6 Exhibit F- Defendants' Responses to Plaintiff's Requests for Production of Documents, # 7 Exhibit G- Disciplinary Action Report, # 8 Exhibit H- Notice of Rescheduled Depositions, # 9 Exhibit I- Plaintiff's Supplemental Request for Production, # 10 Exhibit J- Jackson Lewis Letter 3, # 11 Exhibit K- Notice of Termination, # 12 Exhibit L- Gmail Email, # 13 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 11/06/2025)
11/06/2025	211	TEXT ORDER. On November 5, 2025, the Court received a Motion to Compel from Defendants (Dkt. No. 207) and a Motion to Compel Discovery, for Protective Order, and for Sanctions from Plaintiff (Dkt. No. 210). In light of these motions, the Court extends the mediation and motions deadlines by thirty (30) days. The Court will consider extending the discovery deadline as necessary upon resolution of the parties' pending motions. Mediation is now due by January 5, 2026 and motions are now due by February 4, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 11/06/2025. (kman) (Entered: 11/06/2025)
11/06/2025	212	***DOCUMENT MAILED 211 Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 11/06/2025)
11/06/2025	213	RESPONSE in Opposition re 207 MOTION to Compel Response filed by Debra Nelson. Reply to Response to Motion due by 11/13/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 11/06/2025)

11/12/2025	<u>214</u>	MOTION Compel Discovery, Enforce Subpoenas, and Leave to Depose Additional Witnesses by Debra Nelson. Response to Motion due by 12/1/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Exhibit A- Order, # <u>2</u> Exhibit B- Subpoena, # <u>3</u> Exhibit C- Former Employees Email, # <u>4</u> Exhibit D- Former Employees Email 2, # <u>5</u> Exhibit E- Proof of Service, # <u>6</u> Exhibit F- Gmail, # <u>7</u> Exhibit I- Notice of Rescheduled Depositions)Motions referred to Mary Gordon Baker.(dgar) (Entered: 11/13/2025)
11/13/2025	<u>215</u>	RESPONSE in Opposition re <u>210</u> MOTION to Compel MOTION for Protective Order MOTION for Sanctions Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 11/20/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # <u>1</u> Exhibit A - October 23 Correspondence with Debra Nelson regarding Discovery Responses, # <u>2</u> Exhibit B - Answers to Defendants' First Set of Production, # <u>3</u> Exhibit C - November 3 Correspondence with Debra Nelson regarding Subpoenas, # <u>4</u> Exhibit D - October 14 Correspondence with Debra Nelson, # <u>5</u> Exhibit E - October 13 emails with Debra Nelson, # <u>6</u> Exhibit F - October 20 Correspondence with Debra Nelson, # <u>7</u> Exhibit G - Answers to Defendants' First Set of Interrogatories, # <u>8</u> Exhibit H - November 4 Correspondence with Debra Nelson, # <u>9</u> Exhibit I - October 22 Correspondence, # <u>10</u> Exhibit J - Plaintiff's Deposition Excerpts)(Samples, Thomas) (Entered: 11/13/2025)
11/13/2025	<u>216</u>	RESPONSE in Support re <u>207</u> MOTION to Compel Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. (Attachments: # <u>1</u> Exhibit A - October 23 Correspondence with Debra Nelson regarding Discovery Responses, # <u>2</u> Exhibit B - October 15 Email, # <u>3</u> Exhibit C - Deficiency Ltr re First Discovery Responses, # <u>4</u> Exhibit D - Answers to Defendants' First Set of Production, # <u>5</u> Exhibit E - Plaintiff's Deposition Excerpts)(Samples, Thomas) (Entered: 11/13/2025)
11/13/2025	<u>217</u>	MOTION for Extension of Time to Complete Discovery (<i>Limited</i>) by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. Response to Motion due by 12/1/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. No proposed order.Motions referred to Mary Gordon Baker.(Samples, Thomas) (Entered: 11/13/2025)

11/14/2025	218	NOTICE filed by Debra Nelson. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 11/17/2025)
11/14/2025	219	OBJECTIONS by Debra Nelson to 194 Order on Motion to Compel, Order on Motion for Protective Order, 192 Order on Motion to Compel, Order on Motion for Protective Order, Order on Motion to Strike. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 11/17/2025)
11/14/2025	220	MOTION for Protective Order, MOTION to Quash, MOTION for Sanctions (Response to Motion due by 12/1/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45.) by Debra Nelson. (Attachments: # 1 Proposed Order, # 2 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 11/17/2025)
11/14/2025	221	NOTICE filed by Debra Nelson. (Attachments: # 1 Exhibit A- Record of Procedural Irregularities for Preservation Purposes Only, # 2 Certificate of Service)(dgar) (Entered: 11/17/2025)
11/24/2025	222	TEXT ORDER: Plaintiff has filed objections to two discovery orders of the Magistrate Judge (Dkt. Nos. 192 and 194), which was entered on the docket on October 14, 2025. (Dkt. No. 219). Pursuant to Fed. R. Civ. P. 72(b)(2), Defendants may file responses to the objections within 14 days after the objections were entered on the docket or the date in which Plaintiff served Defendants with the objections, whichever is soonest. Plaintiff may file a reply to any response of the Defendants within 7 days thereafter. AND IT IS SO ORDERED. Entered at the direction of the Honorable Richard M Gergel on 11/24/2025. (ltap,) (Entered: 11/24/2025)
11/24/2025	223	***DOCUMENT MAILED 222 Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 11/24/2025)
11/24/2025	224	REPLY 215 to Response to Motion re 210 MOTION to Compel MOTION for Protective Order MOTION for Sanctions. Response filed by Debra Nelson. (dgar) (Entered: 11/24/2025)
11/24/2025	225	MOTION to Compel the Depositions of Jeff Womack, Brian Fogarty, and Caleb Roy and for Sanctions Under Rule 37 by Debra Nelson. Response to Motion due by 12/8/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Supplement can be found

		at 243 (Attachments: # 1 Proposed Order)Motions referred to Mary Gordon Baker.(dgar) Modified on 12/8/2025 (dgar,). (Entered: 11/24/2025)
11/25/2025	226	MOTION for Extension of Time by Apple, Inc.. Response to Motion due by 12/9/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. No proposed order.Motions referred to Mary Gordon Baker.(Wehrman, Robert) (Main Document 226 replaced on 11/25/2025 with new document to include correct case number) (dgar,). (Entered: 11/25/2025)
11/25/2025	227	MOTION for Protective Order Regarding Mediation Scheduling and Dates of Unavailability by Debra Nelson. Response to Motion due by 12/9/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Proposed Order)Motions referred to Mary Gordon Baker.(dgar) (Entered: 11/25/2025)
11/25/2025	233	PLAINTIFF'S CONSOLIDATED SUPPLEMENT AND NOTICE REGARDING MEDIATION, COUNSEL CONDUCT, AND PROTECTED UNAVAILABILITY. (Attachments: # 1 Exhibit A- Email)(dgar) (Entered: 12/02/2025)
11/26/2025	228	RESPONSE in Opposition re 220 MOTION for Protective Order MOTION to Quash MOTION for Sanctions Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 12/3/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Valenza, Joseph) (Entered: 11/26/2025)
11/26/2025	229	REPLY to Response to Motion re 199 MOTION for Recusal <i>DEFS' RESPONSE TO PLF OBJECTIONS TO MAGISTRATE JUDGE'S ORDERS</i> Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. (Valenza, Joseph) (Entered: 11/26/2025)
11/26/2025	230	RESPONSE in Opposition re 214 MOTION Compel Discovery, Enforce Subpoenas, and Leave to Depose Additonal Witnesses, 225 MOTION to Compel Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 12/3/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit A (Excerpt from Coleman Dep), # 2 Exhibit B (Emails with Nelson re former employees), # 3 Exhibit C (Nelson Email

		confirming addresses), # 4 Exhibit D (Nelson email requesting depositions beyond limit), # 5 Exhibit E (Nelson Emails re Deposition of Womack), # 6 Exhibit F (Emails with Nelson re Fogarty deposition, witness fee, etc.), # 7 Exhibit G (Nelson email re Substitute Dave McKeough), # 8 Exhibit H (Nelson Signed Notice of Deposition (Dave McKeown as Alternative)), # 9 Exhibit I (Deposition Excerpts)(Valenza, Joseph) (Main Document 230 replaced with corrected document provided by filing user to correct the attorney signature on 12/1/2025) (agaz,). (Entered: 11/26/2025)
12/01/2025	232	TEXT ORDER granting 226 Motion for Extension of Time until 12/8/25 for Apple to file a Reply to Plaintiffs Objections. AND IT IS SO ORDERED. Entered at the direction of the Honorable Richard M Gergel on 12/1/2025.(Itap,) (Entered: 12/01/2025)
12/02/2025	235	MOTION for Default Judgment as to Curtis Wright Electro Mechanical Corp., Stephanie Lanier, and Shane Sablotsky by Debra Nelson. Response to Motion due by 12/16/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Supplement can be found at 247 (Attachments: # 1 Exhibit A- Order, # 2 Exhibit B- Order #2, # 3 Exhibit C- Plaintiff's Objections to magistrate Judge's Orders, # 4 Exhibit D- Plaintiff's Notice Regarding Undocketed Filing Submitted on November 6, 2025, # 5 Exhibit E- Defendants' Response to Plaintiff's Objections to the Magistrate Judge's Orders, # 6 Exhibit F- Gmail, # 7 Exhibit G- Gmail #2, # 8 Exhibit H- Debra Nelson Deposition, # 9 Exhibit I- Gmail #3, # 10 Exhibit I-1- Gmail #4, # 11 Exhibit J- Debra Nelson Deposition #2, # 12 Exhibit K- Non-Party Apple Inc's Motion for Extension of Time)Motions referred to Mary Gordon Baker.(dgar) Modified on 12/12/2025 (dgar,). (Entered: 12/03/2025)
12/02/2025	236	PLAINTIFF'S JUDICIAL MOTION for Recusal by Debra Nelson. Response to Motion due by 12/16/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Supplement can be found at 248 (Attachments: # 1 Exhibit A- Text Order, # 2 Exhibit B- Plaintiff's Objections to Magistrate Judge's Orders, # 3 Exhibit D- Plaintiff's Notice Regarding Undocketed Filing Submitted on November 6, 2025, # 4 Exhibit E- Non-Party Apple Inc.'s Motion for Extension of Time, # 5 Exhibit F- Order, # 6 Exhibit G- Order #2, # 7 Exhibit H- Defendants' Response to Plaintiff's Objections to the Magistrate Judge's Orders, # 8 Exhibit I- Gmail, # 9 Exhibit J- Office of the Secretary, # 10 Exhibit K- Gmail #2, # 11 Exhibit L- Debra Nelson Deposition, # 12 Exhibit M- Subpoena, # 13 Exhibit N- Gmail #3,

		# 14 Exhibit N-1- Gmail #4, # 15 Certificate of Service, # 16 Exhibit List)Motions referred to Mary Gordon Baker.(dgar) Modified on 12/12/2025 (dgar,). (Entered: 12/03/2025)
12/03/2025	234	***DOCUMENT MAILED 232 Order on Motion for Extension of Time, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 12/03/2025)
12/04/2025	237	TEXT ORDER. The Court extends the parties' deadline to complete the discovery implicated in the currently pending discovery motions to January 30, 2026. Further details regarding the discovery at issue are forthcoming. In light of the extended discovery deadline, the mediation deadline is extended to February 27, 2026 and the motions deadline is extended to March 31, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025. (kman,) (Entered: 12/04/2025)
12/04/2025	238	TEXT ORDER finding as moot 227 Motion for Protective Order. In light of the extended mediation deadline, Plaintiff's Motion for Protective Order Regarding Mediation Scheduling and Dates of Unavailability (Dkt. No. 227) is rendered MOOT. The Court asks Defendants to be mindful of Plaintiff's unavailability from December 20-27, 2025 and January 4-10, 2026. Defendants are further advised to include Plaintiff on their communications with the mediator regarding scheduling moving forward. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025. (kman,) (Entered: 12/04/2025)
12/04/2025	239	TEXT ORDER finding as moot 217 Motion for Extension of Time to Complete Discovery. In light of the Court's extension of the parties' deadline to complete the discovery implicated in the currently pending discovery motions, Defendants' Motion for Extension of Time to Complete Discovery (Dkt. No. 217) is rendered MOOT. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/04/2025.(kman,) (Entered: 12/04/2025)

12/04/2025	240	***DOCUMENT MAILED 237 Order, 239 Order on Motion for Extension of Time to Complete Discovery, 238 Order on Motion for Protective Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 12/04/2025)
12/04/2025	241	MOTION to Compel Compliance with Third Party Subpoenas by Debra Nelson. Response to Motion due by 12/18/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit A- Deposition, # 2 Exhibit B- Non-Party Apple Inc.'s Motion for Extension of Time, # 3 Exhibit C1- Google, # 4 Exhibit C2- Subpoena, # 5 Exhibit C3- Gmail Notice of Procedural Issue, # 6 Exhibit D MS-1- Order, # 7 Exhibit D MS-2- Objections to Subpoena, # 8 Exhibit D MS-3- Plaintiff's Meet and Confer Letter, # 9 Exhibit E- Verizon, # 10 Exhibit F- Subpoena #2, # 11 Exhibit G- Gmail, # 12 Exhibit H- Proposed Order, # 13 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) Modified on 12/8/2025 to edit docket text per chamber request. (dgar). (Entered: 12/05/2025)
12/05/2025	242	NOTICE filed by Brian Fogarty. (Attachments: # 1 Supporting Documents, # 2 Envelope)(dgar) (Entered: 12/05/2025)
12/08/2025	243	SUPPLEMENT to Plaintiff's November 24, 2025 Motion by Debra Nelson to 225 MOTION to Compel. (Attachments: # 1 Exhibit A- Letter, # 2 Exhibit B- Letter 2, # 3 Exhibit C- Refund Requested, # 4 Exhibit D- Email, # 5 Exhibit E- Office of Naval Inspector General, # 6 Exhibit F- NEF, # 7 Exhibit G- Gmail, # 8 Exhibit H- Subpoena, # 9 Certificate of Service)(dgar) (Entered: 12/08/2025)
12/08/2025	244	REPLY by Apple, Inc. to 219 Objections, . (Wehrman, Robert) (Entered: 12/08/2025)
12/09/2025	245	Letter from Debra Nelson. (dgar) (Entered: 12/10/2025)
12/11/2025	247	SUPPLEMENT by Debra Nelson to 235 MOTION for Default Judgment as to. (dgar) (Entered: 12/12/2025)
12/11/2025	248	SUPPLEMENT by Debra Nelson to 236 MOTION for Recusal. (Attachments: # 1 Exhibit A- Summary of Post-Reassignment Orders and Denials, # 2 Certificate of Service)(dgar) (Entered: 12/12/2025)
12/11/2025	249	Letter from Debra Nelson. (dgar) (Entered: 12/12/2025)

12/12/2025	246	DELETION OF DOCKET ENTRY NUMBER 246 Reason: Court directed clerk to remove document filed prematurely on 12/12/25. (cper,) (Entered: 12/12/2025)
12/15/2025	250	REPORT AND RECOMMENDATION: The undersigned RECOMMENDS that Defendants' PartialMotion to Dismiss (Dkt. No. 93) should be GRANTED IN PART AND DENIED IN PART.More specifically, the undersigned RECOMMENDS that Plaintiff's state law breach of contract claim should be DISMISSED, and that all other claims should SURVIVE.IT IS SO RECOMMENDED. Objections to R&R due by 12/29/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Signed by Magistrate Judge Mary Gordon Baker on 12/15/2025. (dgar) (Entered: 12/15/2025)
12/15/2025	251	ORDER: the Court GRANTS IN PART AND DENIES IN PART Defendants' Motion to Compel (Dkt. No. 207); GRANTS IN PART AND DENIES IN PART Plaintiff's Motion to Compel, Motion for Protective Order, and Motion for Sanctions (Dkt. No. 210); GRANTS IN PART AND DENIES IN PART Plaintiff's Motion to Compel Discovery, Enforce Subpoenas, and Depose Additional Witnesses (Dkt. No. 214); DISMISSES IN PART AND DENIES IN PART Plaintiff's Motion for Protective Order, Motion to Quash, and Motion for Sanctions (Dkt. No. 220); and DISMISSES IN PART AND DENIES IN PART Plaintiff's Motion to Compel the Depositions of Jeff Womack, Brian Fogarty, and Caleb Roy (Dkt. No. 225). Having resolved all current discovery disputes in this case, the undersigned cautions that NO FURTHER EXTENSIONS OF THE DISCOVERY DEADLINE WILL BE GRANTED. At this juncture, the discovery deadline has expired, except to allow the parties to comply with the orders and instructions set forth herein. Thus, any additional discovery requests served after the date of this Order are untimely, and the parties need not comply with them. Additionally, the Court will not entertain further discovery motions unless pertinent to the orders and instructions set forth herein. IT IS SO ORDERED. Signed by Magistrate Judge Mary Gordon Baker on 12/15/2025.(dgar) (Entered: 12/15/2025)

12/15/2025	252	***DOCUMENT MAILED 251 Order on Motion to Compel, Order on Motion for Protective Order, Order on Motion for Sanctions, Order on Motion for Miscellaneous Relief,, Order on Motion to Quash,, 250 REPORT AND RECOMMENDATION re 93 MOTION to Dismiss filed by Shane Sablotsky, Curtiss Wright Electro Mechanical Corp., Stephanie Lanier placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 12/15/2025)
12/16/2025	253	RESPONSE in Opposition re 241 MOTION to Compel Response filed by Bonnie Travaglio Hunt, Hunt Law LLC.Reply to Response to Motion due by 12/23/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Countryman, Andrew) (Entered: 12/16/2025)
12/16/2025	254	Letter from Counsel for Hunt. (Countryman, Andrew) (Entered: 12/16/2025)
12/16/2025	255	RESPONSE in Opposition re 235 MOTION for Default Judgment as to <i>a Terminating Sanction</i> Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 12/23/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit A (10.20.2025 Correspondence with Nelson), # 2 Exhibit B (Filed motions for 11.6.2025), # 3 Exhibit C (Email communications with Nelson re Nelson v Curtiss Wright et al., # 4 Exhibit D (Nelson depo excerpts))(Samples, Thomas) (Entered: 12/16/2025)
12/17/2025	256	MOTION to Correct the Record and Docket by Debra Nelson. Response to Motion due by 12/31/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Mary Gordon Baker.(dgar) (Entered: 12/17/2025)
12/17/2025	257	MOTION for Status and Expedited Ruling by Debra Nelson. Response to Motion due by 12/31/2025. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Motions referred to Mary Gordon Baker.(dgar) (Entered: 12/17/2025)
12/18/2025	258	RESPONSE in Opposition re 241 MOTION to Compel Response filed by Google, LLC.Reply to Response to Motion due by 12/29/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit 1- Decl. A. Vonderheid, # 2 Certificate of Service)(Fox, Margaret) (Entered: 12/18/2025)

12/18/2025	259	RESPONSE in Opposition re 241 MOTION to Compel <i>and Certificate of Service</i> Response filed by Microsoft Corporation.Reply to Response to Motion due by 12/29/2025 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit 1-Declaration of Wasserstein, # 2 Exhibit 1-A Declaration of Van Scyoc, # 3 Exhibit 1-B WDWA Order)(Whelan, Robert) (Entered: 12/18/2025)
12/18/2025	260	REPLY 255 to Response to Motion re 235 MOTION for Default Judgment as to Response filed by Debra Nelson. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 12/19/2025)
12/18/2025	261	MOTION to Quash, MOTION for Protective Order, MOTION for issuance of Subpoena (Response to Motion due by 1/5/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45.) by Debra Nelson. (Attachments: # 1 Exhibit A- Subpoena, # 2 Exhibit B- Jackson Lewis, # 3 Exhibit C- Certified Mail, # 4 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 12/19/2025)
12/19/2025	262	ORDER: The Court affirms the decisions set forth in the Magistrate Judge's orders Nos. 192 and 194 and overrules the objections of Plaintiff (Dkt. No. 219). AND IT IS SO ORDERED. Signed by Honorable Richard M Gergel on 12/19/2025. (Itap,) (Entered: 12/19/2025)
12/19/2025	263	TEXT ORDER finding as moot 257 Motion. On December 17, 2025, the Court received Plaintiff's Motion for Status and Expedited Ruling on Pending Discovery Motion, for Leave to Conduct Limited Discovery Related to Witness Nonparticipation and for Cost-Shifting (Dkt. No. 257). The Court already addressed the questions and concerns raised in Plaintiff's Motion (Dkt. No. 257) in its December 15, 2025 Order (Dkt. No. 251), which Plaintiff likely had not yet received at the time she filed her Motion (Dkt. No. 257) on December 17. Plaintiff's Motion (Dkt. No. 257) is therefore DISMISSED AS MOOT. As noted in the Court's December 15, 2025 Order, the deadline for new discovery in this case has expired. Thus, for purposes of clarity, the undersigned explicitly notes that Plaintiff's request for leave to issue additional third-party subpoenas requesting phone metadata is DENIED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/19/2025.(kman,) (Entered: 12/19/2025)

12/19/2025	264	TEXT ORDER finding as moot 261 Motion. On December 18, 2025, the Court received Plaintiff's Emergency Motion to Quash Subpoena and for Protective Order (Dkt. No. 261) in which Plaintiff repeats the requests made in her earlier motions (Dkt. Nos. 210, 220). Again, the Court addressed Plaintiff's requests in its December 15, 2025 Order (Dkt. No. 251), which the undersigned assumes Plaintiff had not yet received at the time she filed her Motion (Dkt. No. 261) on December 18. Plaintiff's Motion (Dkt. No. 261) is therefore DISMISSED AS MOOT. Entered at the direction of Magistrate Judge Mary Gordon Baker on 12/19/2025. (kman,) (Entered: 12/19/2025)
12/19/2025	265	***DOCUMENT MAILED 262 Order, 264 Order on Motion to Quash, Order on Motion for Protective Order, Order on Motion for Issuance of Subpoena, 263 Order on Motion for Miscellaneous Relief, placed in U.S. Mail from Charleston Clerks Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 12/19/2025)
12/23/2025	266	ORDER: The Court finds that no reasonable, well-informed observer who assessed all of the facts and circumstances of this case would conclude that the undersigned's impartiality might reasonably be questioned. Consequently, the Court denies Plaintiff's motion to recuse. (Dkt. No. 236). AND IT IS SO ORDERED. Signed by Honorable Richard M Gergel on 12/23/2025.(ltap,) (Entered: 12/23/2025)
12/23/2025	267	Joint MOTION for Confidentiality Order by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. Response to Motion due by 1/6/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Proposed Order)Proposed order is being emailed to chambers with copy to opposing counsel.Motions referred to Mary Gordon Baker.(Samples, Thomas) (Entered: 12/23/2025)
12/29/2025	268	***DOCUMENT MAILED 266 Order on Motion for Recusal, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 12/29/2025)
01/05/2026	270	ORDER RULING ON 250 Report and Recommendation: The Court adopts the R & R of the Magistrate Judge (Dkt. No. 250) as the order of the Court and denies Defendants' motion to dismiss

		(Dkt. No. 93) for all claims except the breach of contract claim. AND IT IS SO ORDERED. Signed by Honorable Richard M Gergel on 1/5/2026. (Itap,) (Entered: 01/05/2026)
01/05/2026	271	MOTION for Protective Order (Response to Motion due by 1/20/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45.), MOTION to Strike by Debra Nelson. (Attachments: # 1 Exhibit A- Page Vault 1, # 2 Exhibit B- Page Vault 2, # 3 Exhibit C- Plaintiff's Supplemental Request for Production, # 4 Exhibit D- Email, # 5 Exhibit E1- Discovery Responses, # 6 Exhibit E2- Discovery Responses from Defense, # 7 Exhibit E3- Flash Drive Response to 4th RFP, # 8 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 01/06/2026)
01/05/2026	272	REPLY by Debra Nelson to 251 Order on Motion to Compel, Order on Motion for Protective Order, Order on Motion for Sanctions, Order on Motion for Miscellaneous Relief, Order on Motion to Quash. (Attachments: # 1 Certificate of Service)(dgar) (Entered: 01/06/2026)
01/05/2026	273	OBJECTION to 250 Report and Recommendation by Debra Nelson. Reply to Objections due by 1/20/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Envelope)(dgar) (Entered: 01/06/2026)
01/06/2026	274	***DOCUMENT MAILED 270 Order Ruling on Report and Recommendation, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 01/06/2026)
01/06/2026	275	AMENDED ORDER Ruling on 250 REPORT AND RECOMMENDATION: The Court adopts the R & R of the Magistrate Judge (Dkt. No. 250) as the order of the Court and denies Defendants motion to dismiss (Dkt. No. 93) for all claims except the breach of contract claim. AND IT IS SO ORDERED. Signed by Honorable Richard M Gergel on 1/6/2026. (Itap,) (Entered: 01/06/2026)
01/07/2026	276	***DOCUMENT MAILED 275 Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 01/07/2026)

01/12/2026	277	NOTICE of Defendants' Refusal to Respond to Requests for Production. (Attachments: # 1 Exhibit A- Notice of Defendant's Refusal to Respond to Requests for Production, # 2 Certificate of Service)(dgar) (Entered: 01/13/2026)
01/16/2026	278	ORDER granting 267 Motion for Confidentiality Order. Signed by Magistrate Judge Mary Gordon Baker on 1/16/2026.(dgar) (Entered: 01/16/2026)
01/16/2026	279	***DOCUMENT MAILED 278 Order on Motion for Confidentiality Order placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 01/16/2026)
01/16/2026	280	AMENDED ANSWER to <i>Plaintiff's Fourth</i> 79 Amended Complaint by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. (Samples, Thomas) (Entered: 01/16/2026)
01/16/2026	281	RESPONSE in Opposition re 271 MOTION for Protective Order MOTION to Strike Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky.Reply to Response to Motion due by 1/23/2026 Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Exhibit A - Signed Amended Notice of Deposition, # 2 Exhibit B - Defendants' Responses to Plaintiff's Fourth Request for Production)(Samples, Thomas) (Entered: 01/16/2026)
01/22/2026	283	STATUS REPORT <i>Regarding the Status of Mediation</i> by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. (Attachments: # 1 Exhibit A - Initial Mediation Correspondence, # 2 Exhibit B - Ongoing Mediation Correspondence, # 3 Exhibit C - January 8 Correspondence, # 4 Exhibit D - Correspondence Including Mediator)(Samples, Thomas) (Entered: 01/22/2026)
01/23/2026	284	REPLY 283 Status Update, by Debra Nelson. (Attachments: # 1 Exhibit A- Subpoena, # 2 Exhibit B- Certified Mail, # 3 Exhibit C- Screenshots, # 4 Certificate of Service)(dgar) (Entered: 01/23/2026)
02/03/2026	285	TEXT ORDER denying 235 Motion for Default Judgment. On December 2, 2025, Plaintiff filed a Motion for Default Judgment (Dkt. No. 235) seeking, inter alia, an "entry of Default Judgment as a Terminating Sanction" against Defendants in light of their alleged "pervasive pattern of bad-faith

litigation misconduct." (Id.) In her Motion, Plaintiff raises various qualms with the Court's handling of her case, and with Defendants' conduct throughout the litigation. (See generally id.)

First, to the extent Plaintiff takes issue with discovery materials Defendants have or have not provided and/or any purported "procedural irregularities, missing filings, contradictory rulings, and evidence obstruction," the Court has already addressed these issues. (See, e.g., Dkt. Nos. 251, 262, 266.) Specific to Plaintiff's request for "entry of Default Judgment," the undersigned notes that "[t]he entry of default is a procedural prerequisite to the entry of a default judgment," *Eagle Fire, Inc. v. Eagle Integrated Controls, Inc.*, No. 3:06-cv-264, 2006 WL 1720681, at *5 (E.D. Va. June 20, 2006), and no entry of default has been made in this case. Because Plaintiff is pro se, the undersigned has alternatively construed her request as seeking the entry of default. See *Holmes v. Carroll*, No. 0:17-cv-1257-HMH-PJG, 2018 WL 1157189, at *1 n.2 (D.S.C. Mar. 5, 2018) (liberally construing pro se plaintiff's motion for default judgment as a request for entry of default). Entry of default is warranted "[w]hen a party against whom a judgment for affirmative relief is sought has failed to plead or otherwise defend, and that failure is shown by affidavit or otherwise." Fed. R. Civ. P. 55(a). Here, Defendants have not failed to plead or otherwise defend. Thus, Plaintiff's request for "entry of Default Judgment," whether construed as one for entry of default or default judgment, is DENIED.

Plaintiff's motion also references Federal Rule of Civil Procedure 37 (Dkt. No. 235), requests that the Court impose default judgment as a "terminating sanction," and suggests various other potential sanctions the Court should impose against Defendants. (Id.) The Court does indeed have authority to sanction a party for failure to comply with the discovery process pursuant to Rule 37(d), Fed. R. Civ. P. However, prior to imposing sanctions under Rule 37, Fed. R. Civ. P., the district court must consider four factors: "(1) whether the non-complying party acted in bad faith, (2) the amount of prejudice that noncompliance caused the adversary, (3) the need for deterrence of the particular sort of non-compliance, and (4) whether less drastic sanctions would have been effective." *Belk v. Charlotte Mecklenburg Bd. of Educ.*, 269 F.3d 305, 348 (4th Cir. 2001). Upon careful review of Plaintiff's

		allegations and the current record, the Court finds no basis upon which to impose any sanctions on Defendants. Accordingly, Plaintiff's Motion (Dkt. No. 235) is DENIED IN FULL. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	286	TEXT ORDER. On December 2, 2025, Plaintiff filed a Motion for Recusal (Dkt. No. 236) seeking to recuse the undersigned Magistrate Judge and the District Judge assigned to her case. In this motion, Plaintiff repeats many of the same arguments she made in her October 27, 2025 Motion for Recusal (Dkt. No. 199), which was denied by the Court on October 30, 2025 (Dkt. No. 204). On December 23, 2025, the District Judge assigned to this case filed an Order denying Plaintiff's December 2, 2025 Motion for Recusal (Dkt. No. 266), explaining that no reasonable, well-informed observer who assessed all of the facts and circumstances of this case could conclude that the District Judge's impartiality might reasonably be questioned. Though Plaintiff's Motion for Recusal (Dkt. No. 236) is no longer pending in light of the District Judge's December 23 Order (Dkt. No. 266), the undersigned notes, out of an abundance of caution, that Plaintiff's Motion for Recusal (Dkt. No. 236) is also DENIED as to the undersigned for the reasons set forth in the undersigned's October 30, 2025 Order and the reasons set forth in the District Judge's December 23, 2025 Order. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026. (kman,) (Entered: 02/03/2026)
02/03/2026	287	TEXT ORDER finding as moot 256 Motion to Amend/Correct. On December 17, 2025, Plaintiff filed a Motion to Correct the Record and the Docket (Dkt. No. 256) in which she "moves the Court to correct and clarify the docket and record to accurately reflect Plaintiff's filings submitted on November 6, 2025." (Id.) In her motion, Plaintiff takes issue with the Court's handling of her November 6, 2025 objections to the undersigned's October 20, 2025 and October 21, 2025 discovery orders. (Id.) More specifically, Plaintiff claims that she submitted her objections to the Court on November 6, 2025, but the filing was not docketed until November 14, 2025. (Id.) Plaintiff asks that the Court update the docket to reflect the same in order to avoid confusion and prevent prejudice to Plaintiff. (Id.)

		Upon review, the undersigned finds Plaintiff's motion (Dkt. No. 256) is MOOT. Indeed, review of the objections filed at Docket Number 219 makes clear that Plaintiff submitted her objections to the Court on November 6, 2025. (See Dkt. No. 219.) Further, the District Judge assigned to this case affirmed the discovery orders to which Plaintiff objected in an Order dated December 19, 2025. (Dkt. No. 262.) In that Order, the District Judge considered the merits of Plaintiff's objections and did not make any findings based upon the date on which Plaintiff's objections were filed. (Id.) As such, Plaintiff was not prejudiced by any purported delay in the Court's filing of the objections she submitted on November 6, 2025. Plaintiff's motion (Dkt. No. 256) should therefore be DISMISSED AS MOOT. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	288	TEXT ORDER denying 241 Motion to Compel. On December 4, 2025, Plaintiff filed a Motion to Compel Compliance with Third Party Subpoenas (Dkt. No. 241) in which she takes issue with the subpoena responses (or lack thereof) she received from "[Apple,] Google, Microsoft, Verizon, Motorola Mobility, Honda/Acura, and Hunt Law LLC." (Id.) Subpoenas are governed by Federal Rule of Civil Procedure 45. A subpoena made on a non-party must state the place where compliance is required, which must be within 100 miles of where the subpoenaed non-party resides, is employed, or regularly transacts business in person. Fed. R. Civ. P. 45(a)(1)(A)(iii), (c)(2)(A). A subpoena that requires a non-party's compliance outside of Rule 45's geographical scope is invalid. See <i>Miller v. Holzmann</i>, 471 F. Supp. 2d 119, 121 (D.D.C. 2007). Federal Rule of Civil Procedure 37 governs motions to compel discovery responses. When filing a motion to compel discovery responses from a non-party, the motion must be made in the court where the discovery is or will be taken. Fed. R. Civ. P. 37(a), 45(d); see also <i>Oakwood Prods., Inc. v. SWK Techs., Inc.</i>, No. 9:20-cv-04107-DCN, 2022 WL 7108844, at *8 (D.S.C. Oct. 12, 2022) ("[W]hen a party

		seeks to compel a non-party's action pursuant to a subpoena duces tecum, the party must file its motion to compel in the district where the sought documents are located, not in the district where the subpoena was issued."). First, the Court has already considered Plaintiff's arguments regarding Apple and Hunt Law LLC and need not readdress them here. (See Dkt. Nos. 192, 194.) Second, the Court cannot compel compliance with the remaining non-party subpoenas because review of the record indicates that the subpoenas are invalid because they require compliance outside the geographical scope of Rule 45 and/or Plaintiff attempts to compel compliance in the wrong District Court. Fed. R. Civ. P. 37, 45. Plaintiff's motion (Dkt. No. 241) is therefore DENIED. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	289	TEXT ORDER denying 271 Motion for Protective Order. On January 5, 2026, Plaintiff filed a Motion for Protective Order (Dkt. No. 271) in which she takes issue with "Defendants' production of extensive personal social-media materials" which Defendants produced in response to her Fourth Set of Requests for Production. (Id.) Plaintiff asks the Court to strike the materials, prohibit Defendants from relying upon them in this litigation, and enter a protective order barring further collection, production, or use of her personal social media content. (Id.) In response, Defendants contend that their "production of Plaintiff's public social media was in response to a request that Plaintiff served on September 30 in her Amended Deposition Notice." (Dkt. No. 281.) Specifically, Plaintiff requested: "All documents reflecting monitoring, viewing, tracking, reporting, or collection of Plaintiff's LinkedIn or other social media activity by CW employees or agents, including screenshots, page analytics, instructions to monitor, and resulting summaries." (Id.; see also Dkt. No. 281-1 at 6; Dkt. No. 281-2 at 3.) Defendants therefore produced screenshots of Plaintiff's public social media that it had collected, since those screenshots were responsive to Plaintiff's discovery request. Defendants further explain that Plaintiff's concerns about the materials produced

		are misplaced because none of the materials have been filed with the Court at this juncture and a protective order would be premature since Defendants have not indicated that they intend to use the specific materials with which Plaintiff's motion takes issue. (Dkt. No. 281.) The undersigned agrees with Defendants. The record shows that Plaintiff requested the materials Defendants produced, and the Court has already determined that Plaintiff's social media activity is discoverable. (Dkt. Nos. 251, 281.) Further, Plaintiff's request for a protective order is futile here, given that discovery has ended, a confidentiality order is in place, and, in any event, "[a]ll of the social media for which Plaintiff seeks a protective order is publicly available." (Dkt. No. 281.) Plaintiff's motion (Dkt. No. 271) is therefore DENIED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026.(kman,) (Entered: 02/03/2026)
02/03/2026	290	TEXT ORDER. On January 22, 2026, Defendants filed a Status Report regarding the status of mediation in this case, which is currently due by February 27, 2026. (Dkt. No. 283.) In their Status Report, Defendants explain that they have been unable to schedule mediation and that "Plaintiff informed the mediator that mediation scheduling should be paused until the United States Court of Appeals for the Fourth Circuit rules on Plaintiff's pending writ petitions." (Id.) Plaintiff confirms the same in a response to the Status Report filed on January 23, 2026. (Dkt. No. 284.) Based on the foregoing and in light of the history of this case, the undersigned excuses the parties from the mediation requirement at this time. It is also worth noting that Plaintiff's pending writ petitions do not automatically stay this case. As such, dispositive motions remain due by March 31, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 02/03/2026. (kman,) (Entered: 02/03/2026)

02/04/2026	291	***DOCUMENT MAILED 290 Order, 289 Order on Motion for Protective Order, Order on Motion to Strike, 286 Order, 287 Order on Motion to Amend/Correct, 288 Order on Motion to Compel, 285 Order on Motion for Default Judgment, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 02/04/2026)
02/13/2026	292	MOTION for Sanctions <i>for Non-Compliance with Court Ordered Discovery</i> by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. Response to Motion due by 2/27/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Exhibit A (1/16/26 Ltr to Debra Nelson re discover obligations), # 2 Exhibit B (January 30 Emails), # 3 Exhibit C (February 2 Emails), # 4 Exhibit D (Answers to Defs 1st Set of Production))No proposed order.Motions referred to Mary Gordon Baker.(Samples, Thomas) Modified on 5/5/2026 (dgar,). (Entered: 02/13/2026)
02/18/2026	294	RESPONSE in Opposition re 292 MOTION for Sanctions <i>for Non-Compliance with Court Ordered Discovery</i> . Response filed by Debra Nelson. Reply to Response to Motion due by 2/25/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Certificate of Service)(dgar) (Additional attachment(s) added on 2/20/2026: # 2 Supporting Documents) (dgar,). (Attachment 2 replaced on 3/2/2026) (dgar). (Entered: 02/19/2026)
02/18/2026	295	MOTION to Stay by Debra Nelson. Response to Motion due by 3/4/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # 1 Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Additional attachment(s) added on 2/20/2026: # 2 Supporting Documents) (dgar,). (Attachment 2 replaced on 3/2/2026) (dgar,). (Entered: 02/19/2026)
02/25/2026	297	RESPONSE in Support re 292 MOTION for Sanctions <i>for Non-Compliance with Court Ordered Discovery</i> Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. (Attachments: # 1 Exhibit A (Jan 8 emails re insurance), # 2 Exhibit B (emails re untimely discovery requests))(Samples, Thomas) (Entered: 02/25/2026)

02/27/2026	<u>298</u>	NOTICE filed by Debra Nelson. (Attachments: # <u>1</u> Supporting Documents, # <u>2</u> Certificate of Service)(dgar) (Entered: 03/02/2026)
02/27/2026	<u>299</u>	SUR REPLY to REPLY to Response to Motion re <u>292</u> MOTION for Sanctions <i>for Non-Compliance with Court Ordered Discovery</i> . Response filed by Debra Nelson. (Attachments: # <u>1</u> Certificate of Service)(dgar) (Entered: 03/02/2026)
03/09/2026	<u>301</u>	NOTICE filed by Debra Nelson. (Attachments: # <u>1</u> Exhibit A- EEOC Notice of Right to Sue)(dgar) (Entered: 03/09/2026)
03/16/2026	<u>302</u>	MOTION for Leave to Amend by Debra Nelson. Response to Motion due by 3/30/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. (Attachments: # <u>1</u> Exhibit A- Proposed Fift Amended Complaint, # <u>2</u> Certificate of Service)Motions referred to Mary Gordon Baker.(dgar) (Entered: 03/17/2026)
03/20/2026	303	TEXT ORDER denying <u>295</u> Motion to Stay. On February 18, 2026, Plaintiff filed a Motion to Stay (Dkt. No. 295) in which she asks the Court to: (1) stay all proceedings or, alternatively, stay enforcement of disputed discovery obligations, and (2) stay any ruling on Defendants' Motion for Sanctions (Dkt. No. 292) pending resolution of the Petition for Writ of Prohibition she filed in the United States Court of Appeals for the Fourth Circuit. Upon review, the undersigned sees no reason to stay the instant litigation and therefore DENIES Plaintiff's motion (Dkt. No. 295). As the Court has previously noted, (Dkt. No. 290), Plaintiff's pending writ petitions do not automatically stay this case. See <i>El-Bey v. North Carolina</i>, No. 3:17-cv-272-FDW, 2017 WL 4707034, at *1 (W.D.N.C. Oct. 19, 2017) ("The Federal Rules of Civil Procedure do not provide for an automatic stay of proceedings in the district court while a petition for an extraordinary writ is pending in the appellate court."); <i>Ellis v. U.S. Dist. Ct. for W. Dist. of Washington</i>, 360 F.3d 1022, 1023 (9th Cir. 2004) ("[A] district court does not lose jurisdiction over a case merely because a litigant files an interlocutory petition for an extraordinary writ."). Although an appellate court may stay district court proceedings while a petition for extraordinary relief is pending, the jurisdiction of the district court is not

		interrupted absent such a stay. Woodson v. Surgitek, Inc., 57 F.3d 1406, 1416 (5th Cir. 1995). In her related Fourth Circuit case, Plaintiff has sought, but the Fourth Circuit has not yet granted, a stay of these proceedings pending the Fourth Circuit's consideration of Plaintiff's Petition for Writ of Prohibition. Unless and until informed otherwise by the Fourth Circuit, this Court is not foreclosed from ruling on the pending motions in this case and will continue to adjudicate Plaintiff's claims. Entered at the direction of Magistrate Judge Mary Gordon Baker on 03/20/2026.(kman,) (Entered: 03/20/2026)
03/25/2026	304	ORDER denying 302 Motion to Amend/Correct. Signed by Magistrate Judge Mary Gordon Baker on 3/25/2026.(dgar) (Entered: 03/25/2026)
03/25/2026	305	***DOCUMENT MAILED 304 Order on Motion to Amend/Correct, 303 Order on Motion to Stay, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 03/25/2026)
03/26/2026	306	NOTICE filed by Debra Nelson. (Attachments: # 1 Envelope)(dgar) (Entered: 03/27/2026)
03/27/2026	307	TEXT ORDER. The Court stays the dispositive motions deadline pending resolution of Defendants' Motion for Sanctions (Dkt. No. 292). IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 03/27/2026. (kman,) (Entered: 03/27/2026)
03/30/2026	308	***DOCUMENT MAILED 307 Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 03/30/2026)
04/02/2026	309	REPORT AND RECOMMENDATION: The undersigned RECOMMENDS that Defendants' Motion for Sanctions (Dkt. No. 292) should be GRANTED, and Plaintiff's case should be DISMISSED IN FULL. In the event the District Judge disagrees with full dismissal of Plaintiff's claims, the undersigned ALTERNATIVELY RECOMMENDS that Plaintiff's causes of action for intentional infliction of emotional distress and emotional damages, compensatory and economic damages, whistleblower retaliation, and invasion of privacy and illegal interception of communications should be DISMISSED, and that Plaintiff should be prohibited from using any materials not previously provided to Defendants

		in support of her claims. IT IS SO RECOMMENDED. Objections to R&R due by 4/16/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6 or Fed. R. Crim. P. 45. Signed by Magistrate Judge Mary Gordon Baker on 4/2/2026. (dgar) (Entered: 04/02/2026)
04/02/2026	310	***DOCUMENT MAILED 309 REPORT AND RECOMMENDATION re 292 MOTION for Sanctions <i>for Non-Compliance with Court Ordered Discovery</i> filed by Shane Sablotsky, Curtiss Wright Electro Mechanical Corp., Stephanie Lanier placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 04/02/2026)
04/08/2026	311	OBJECTION to 309 Report and Recommendation by Debra Nelson. Reply to Objections due by 4/22/2026. Add an additional 3 days only if served by mail or otherwise allowed under Fed. R. Civ. P. 6. (Attachments: # 1 Certificate of Service, # 2 Envelope)(dgar) (Entered: 04/08/2026)
04/22/2026	312	REPLY to Response to Motion re 309 REPORT AND RECOMMENDATION re 292 MOTION for Sanctions <i>for Non-Compliance with Court Ordered Discovery</i> filed by Shane Sablotsky, Curtiss Wright Electro Mechanical Corp., Stephanie Lanier Response filed by Curtiss Wright Electro Mechanical Corp., Stephanie Lanier, Shane Sablotsky. (Samples, Thomas) (Entered: 04/22/2026)
04/23/2026	314	NOTICE filed by Debra Nelson. (Attachments: # 1 A- Clinical Summary, # 2 Certificate of Service, # 3 Envelope)(dgar) (Entered: 04/23/2026)
05/04/2026	315	OBJECTIONS by Debra Nelson to 312 Reply to Response to Motion. (Attachments: # 1 Exhibit A- Order, # 2 Exhibit B- Subpoena, # 3 Exhibit C- Jackson Lewis, # 4 Exhibit D- Subpoena 2, # 5 Certificate of Service)(dgar) (Entered: 05/04/2026)
05/04/2026	316	ORDER RULING ON REPORT AND RECOMMENDATION: The Court adopts as the Order of the Court pages 1-22 of the R & R (Dkt. No. 309) and adopts the alternative sanction recommended in the R & R (Id. at 24), as further detailed in the Order.AND IT IS SO ORDERED. Signed by Honorable Richard M Gergel on 5/4/2026. (ltap,) (Entered: 05/04/2026)

05/05/2026	317	***DOCUMENT MAILED 316 Order Ruling on Report and Recommendation, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 05/05/2026)
05/05/2026	318	TEXT ORDER. In light of the District Judge's Order (Dkt. No. 316), dispositive motions on Plaintiff's surviving claims are due by June 15, 2026. IT IS SO ORDERED. Entered at the direction of Magistrate Judge Mary Gordon Baker on 5/5/26. (akob,) (Entered: 05/05/2026)
05/05/2026	319	***DOCUMENT MAILED 318 Order, placed in U.S. Mail from Charleston Clerk's Office to Debra Nelson 2718 Crestline Drive North Charleston, SC 29405. (dgar) (Entered: 05/05/2026)